

## Annexure A to the notice to admit facts - the documents

WC/2024/227 · Shepherd v Workers' Compensation Regulator · the documents referred to in Schedule B, in the order there listed

| Tab | Document                                                                                                                                                   | Date                      | Pages | At    |
|-----|------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------|-------|-------|
| 1   | Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital                                                                       | undated                   | 4     | 2-5   |
| 2   | Email thread, "Corey Shepherd 388372 Pay issues" - Payroll to the Line Manager copied to the Appellant; the Appellant to Payroll; Payroll to the Appellant | 3 to 13 May 2024          | 2     | 6-7   |
| 3   | Same thread continued - the Line Manager to the Appellant, 21 May 2024; and "Validation of Claims older than 3 months - Please sign", 28 May 2024          | 21 and 28 May 2024        | 2     | 8-9   |
| 4   | myHR submissions report for the Appellant, produced by Metro South Health as Item 11                                                                       | 1 February to 31 May 2024 | 1     | 10    |
| 5   | QH Leave Takings Report for the Appellant, produced by Metro South Health as Item 15                                                                       | 19 March 2024             | 1     | 11    |
| 6   | Letter, Metro South Hospital and Health Service to Commissioner Dwyer, reference K-LM26/729, signed by Ms N Cridland, Chief Executive                      | 5 June 2026               | 5     | 12-16 |
| 7   | Letter, Ms L Forrest, Senior Consultant Human Resources, to the Appellant                                                                                  | 7 July 2026               | 6     | 17-22 |
| 8   | Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital                                                                             | November 2024             | 8     | 23-30 |
| 9   | Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital                                                                           | December 2024             | 7     | 31-37 |
| 10  | Email, Mr H Moran, Organiser, Together Queensland, to Ms C Jeffrey, Ms P Conaghan and the Appellant, "Switchboard Roster Feedback - For Delegates"         | 3 November 2025           | 2     | 38-39 |
| 11  | Review Decision 69983, Workers' Compensation Regulator                                                                                                     | 24 October 2024           | 28    | 40-67 |

The documents follow in the order listed. No document has been annotated, highlighted or altered. Where only part of a document is reproduced, the balance is available on request.



## Administration Officer, Switchboard Services (RD)

|                      |                                                         |               |  |
|----------------------|---------------------------------------------------------|---------------|--|
| Job Ad Reference:    |                                                         |               |  |
| Status:              | Administration Officer, Switchboard Services            |               |  |
| Unit/Department:     | Switchboard, Corporate Services                         |               |  |
| Location:            | Logan Hospital, Metro South Hospital and Health Service |               |  |
| Contact:             | Chloe Taylor<br>(07) 2891 9190                          | Salary range: |  |
| Classification:      | A03                                                     | Closing date: |  |
| Online applications: |                                                         |               |  |
| Email applications:  | Chloe.taylor3@health.qld.gov.au                         |               |  |

**\*\*Applications from third parties will not be accepted\*\***

### Purpose of the role

To provide a highly effective and efficient communication service to the public and staff of the Logan Hospital within Metro South Hospital and Health Service.

The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week

### Your key responsibilities

- This position reports to the Switchboard Manager, Corporate Services, Logan Hospital.
- Attend courteously to all telephone enquiries and clients' requests, displaying tact, diplomacy and interpersonal skills of a high standard when dealing with the public and members of staff. Maintain call queues to minimum at all times.
- Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate.
- Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information.
- Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes.
- Ability to communicate at all levels and effectively establish and foster networks throughout the hospital to maintain accurate and current records for effective switchboard operations.
- Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined.
- Interact in a sensitive, timely, effective, and appropriate manner with members of the general public and service providers, maintaining strict confidentiality at all times.
- The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned.
- Contribute to a cohesive team environment by sharing information, supporting and assisting colleagues in a proactive manner.
- Ability to work effectively as an individual with limited supervision to meet deadlines and establish work priorities, and work as a member of a multi-disciplinary team in a changing environment.
- Ensure patients and other staff are treated fairly and with mutual respect and understanding, regardless of cultural, religious, ethnic and linguistic backgrounds, gender, identity, ages or abilities.

- Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces.

## Mandatory qualifications, professional registration and other requirements

- The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period.
- Intermediate / advanced computer skills.
- Recent experience in the operation of a switchboard is desirable but not essential.
- **Vaccine Preventable Disease (VPD):** It is a condition of employment for this role for the employee to be, and remain, vaccinated against the following vaccine preventable diseases during their employment ([Health Employment Directive No. 01/16](#)):
  - measles, mumps, rubella (MMR)
  - varicella (chicken pox)
  - pertussis (whooping cough)
  - hepatitis B
- It is a condition of employment for this role for the employee to be, and remain, vaccinated against COVID-19 ([Health Employment Directive No. 12/21](#) and [Queensland Health Human Resources Policy B70](#)).

## Are you the right person for the job?

How we do things is as important as what we do, therefore within the context of the responsibilities described under 'Your key responsibilities,' the ideal applicant will be someone who can demonstrate the following:

|                                   |                                                                                                                                                                                                                                                                         |
|-----------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Communicate Effectively</b>    | <ul style="list-style-type: none"> <li>▪ Strong communication and negotiation skills to understand customers' needs. Demonstrate respect, courtesy and fairness when interacting with patients, clients and colleagues.</li> </ul>                                      |
| <b>Team Focus</b>                 | <ul style="list-style-type: none"> <li>▪ Value diversity of thought and include everyone within the team. Actively support a culture of diversity, trust, support and inclusion.</li> </ul>                                                                             |
| <b>Technical Skills</b>           | <ul style="list-style-type: none"> <li>▪ Intermediate / advanced computer skills.</li> </ul>                                                                                                                                                                            |
| <b>Change &amp; Quality Focus</b> | <ul style="list-style-type: none"> <li>▪ Be open to new ideas and approaches and be adaptable in the face of change. Support and participate in change initiatives. Follow procedures and processes understanding implications within a health care setting.</li> </ul> |
| <b>Work Ethics</b>                | <ul style="list-style-type: none"> <li>▪ Be honest, ethical and professional. Work within boundaries of role.</li> </ul>                                                                                                                                                |

## How to apply

Please provide the following information to the panel to assess your suitability:

- A short written response (maximum 1-2 pages, dot points acceptable) on how your experience, abilities, knowledge and personal qualities would enable you to achieve the key responsibilities and meet the skill requirements of the role.
- Your current CV or resume, including two referees. You must seek approval prior to nominating a person as a referee.
- Late applications cannot be submitted online. For a late application to be considered, please arrange approval and submission via the contact person.
- Applications will remain current for 12 months or for the duration of the vacancy. Future vacancies of a temporary, full time and part time nature may also be filled through this recruitment process.
- Only those persons eligible to work in Australia may be employed by Queensland Health. Prospective employees are required to provide proof of identity and documentary evidence of their [right to work in Australia](#).

## We are Metro South Health

We are the major public healthcare provider for Brisbane's south side, Logan, Redlands and the Scenic Rim. We operate five major hospitals and a range of community, specialty and state-wide healthcare services. We are renowned for teaching and research excellence.

We are truly dedicated people who care about our community. We come to work to make a difference. We save lives, changes lives and make the world a better place. We overcome the many challenges that come our way by going above and beyond and achieve the best possible outcomes by working together. We are bold, innovative, collaborative, inspiring.

We are part of and proud of the community we serve. We are *better together*.

## Our values

**Our values of Integrity, Compassion, Accountability, Respect, Engagement and Excellence**, shape our culture. Our values guide our day-to-day decision making and are fundamental to what we care about as a health service, how we behave, how we interact with each other and provide care to the many patients who come through our doors every day.



### INTEGRITY

We are authentic, truthful, and transparent, and strive for equity for all.



### COMPASSION

We care for one another and ourselves with empathy, kindness and support.



### ACCOUNTABILITY

We are accountable for our decisions, actions and behaviour.



### RESPECT

We foster an environment of safety, civility, and inclusion.



### ENGAGEMENT

We are one team working together to achieve our best outcomes.



### EXCELLENCE

We empower each other and inspire innovation to deliver excellence.

## Diversity and inclusion

We are the most culturally diverse area of Queensland with 28.5% of the community born overseas and 16% from non-English speaking countries. Our employees proudly reflect the community in which they work. At Metro South Health 20.5% of staff identify as coming from non-English speaking backgrounds.

Having a workforce that reflects and understands the needs and expectations of our community is important to delivering safe, kinder, and more inclusive care.

We recognise our strength comes from the diversity of our people and so we encourage people of all genders, ethnicities, ages, abilities, languages, sexual orientation and family responsibilities to apply.

We are committed to creating a diverse and inclusive workplace for our people and our community.

## Flexible working arrangements

Metro South Health supports and encourages work-life balance for the mutual benefit of Metro South Health and its employees. Work-life balance is about a person's ability to manage their paid work commitments with their career goals, personal, community and cultural responsibilities. Through flexible working arrangements such as leave, flex time accrual or a reduction in working hours, there is an opportunity to match the individual's requirements with those of the workplace – delivering quality health services.

## Additional information

For further information about this opportunity and the benefits and conditions of working at Metro South Health please refer to the **Information for Applicants** document attached with this Smart Jobs advertised vacancy.

So you have finished your Role Description, what's next? Check out the Recruitment Process Flow for next steps, [here](#)



## PayrollMetroSouth

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**From:** PayrollMetroSouth  
**Sent:** Monday, 13 May 2024 8:21 AM  
**To:** Cory Shepherd  
**Subject:** RE: Corey Shepherd 388372 Pay issues

Hi Corey,

I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay.

Kind regards

Elaine

### Elaine Grant

**Client Service Officer, Metro South Payroll Team**

Payroll Transactional Services, Corporate Enterprise Solutions, Corporate Services | Queensland Health

**P** [07 3608 5985](tel:0736085985)  
**E** [elaine.grant@health.qld.gov.au](mailto:elaine.grant@health.qld.gov.au)  
**W** [health.qld.gov.au](http://health.qld.gov.au)  
**A** [Level 1, 11-13 University Drive, Meadowbrook QLD 4131](#)

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**From:** Cory Shepherd <Cory.Shepherd@health.qld.gov.au>  
**Sent:** Friday, May 10, 2024 2:21 PM  
**To:** PayrollMetroSouth <PayrollMetroSouth@health.qld.gov.au>; Elaine Grant <Elaine.Grant@health.qld.gov.au>  
**Subject:** Re: Corey Shepherd 388372 Pay issues

Hi Elaine,

I am writing to follow up on a matter concerning Chloe.

I have previously expressed some concerns regarding her rostering and the challenges she's been facing with payment processing. I was wondering if you have received any response or updates from her regarding these issues.

In case Chloe has already responded or managed to process the missing payments, I would appreciate it if you could keep me informed.

Thank you for your attention to this matter.

Best Regards,  
Cory

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**From:** PayrollMetroSouth <[PayrollMetroSouth@health.qld.gov.au](mailto:PayrollMetroSouth@health.qld.gov.au)>  
**Sent:** Friday, May 3, 2024 9:39 AM  
**To:** Chloe Taylor <[Chloe.Taylor3@health.qld.gov.au](mailto:Chloe.Taylor3@health.qld.gov.au)>  
**Cc:** Cory Shepherd <[Cory.Shepherd@health.qld.gov.au](mailto:Cory.Shepherd@health.qld.gov.au)>  
**Subject:** Corey Shepherd 388372 Pay issues

Hi Chloe,

Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is topping up the missing wages from his RDO balance.

This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775 . If a shift is shortened when RDO accruing the remaining shift not worked needs to be booked as leave without pay to stop the top up. The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour.

Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime.

Fortnight 01.04.24 is the same, 0.95hrs over contracted 76hrs needs to be overtime. I think this should be planned OT on 01.04.24 as that is a 9hr shift.

Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended.

Kind regards  
Elaine

**Elaine Grant**

**Client Service Officer, Metro South Payroll Team**

Payroll Transactional Services, Corporate Enterprise Solutions, Corporate Services | Queensland Health

**P** [07 3608 5985](tel:0736085985)  
**E** [elaine.grant@health.qld.gov.au](mailto:elaine.grant@health.qld.gov.au)  
**W** [health.qld.gov.au](http://health.qld.gov.au)  
**A** [Level 1, 11-13 University Drive, Meadowbrook QLD 4131](#)

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## Renee Matheson

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**From:** Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>  
**Sent:** Tuesday, 21 May 2024 12:33 PM  
**To:** Cory Shepherd  
**Subject:** RE: Corey Shepherd 388372 Pay issues

Hi Cory,

Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an AVAC for next pay run. I will let you know PRN once it has been submitted.

Thanks Chloe

**Chloe Taylor**

**Switchboard Manager** | Switchboard Services

Logan Hospital | **Metro South Health**

Level 2, Building 1, Cnr Loganlea and Armstrong Roads QLD 4131

t. (07) 2891 9190

e. [chloe.taylor3@health.qld.gov.au](mailto:chloe.taylor3@health.qld.gov.au) | [metrosouth.health.qld.gov.au](https://metrosouth.health.qld.gov.au)



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**From:** PayrollMetroSouth  
**Sent:** Friday, May 3, 2024 9:40 AM  
**To:** Chloe Taylor  
**Cc:** Cory Shepherd  
**Subject:** Corey Shepherd 388372 Pay issues

Hi Chloe,

Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is toping up the missing wages from his RDO balance.

This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775 . If a shift is shortened when RDO accruing the remaining shift not worked needs to be booked as leave without pay to stop the top up.

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Fortnight 01.04.24 is the same, 0.95hrs over contracted 76hrs needs to be overtime. I think this should be planned OT on 01.04.24 as that is a 9hr shift.

Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended.

Kind regards

Elaine

**Elaine Grant**  
**Client Service Officer, Metro South**  
**Payroll Team**

Payroll Transactional Services,  
Corporate Enterprise Solutions,  
Corporate Services | Queensland  
Health

**P** 07 3608 5985  
**E** [elaine.grant@health.qld.gov.au](mailto:elaine.grant@health.qld.gov.au)  
**W** [health.qld.gov.au](http://health.qld.gov.au)  
**A** Level 1, 11-13 University Drive,  
Meadowbrook QLD 4131

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| Reference Number | Form Code Text                                  | Person ID | Position | Object ID | Start Date | Date       | Business Status | Processing Date | Case Key                          | Sem Object-Action   | Form Category | Employee Name  | Name           | Name                         | Initiator Name       | Payteam ID | Payteam ID Text | Processor | Form Ty                 | Process |
|------------------|-------------------------------------------------|-----------|----------|-----------|------------|------------|-----------------|-----------------|-----------------------------------|---------------------|---------------|----------------|----------------|------------------------------|----------------------|------------|-----------------|-----------|-------------------------|---------|
| 15325947         | Attendance Variation and Allowance Claim (AVAC) | 388372    | 32002276 | 72010875  | 6/02/2024  | 22/01/2024 | Completed       | 8/02/2024       | 16090527EA951EEEB18F4EC08F46D526  | Forms-Upload        | AVACs         | Shepherd, Cory | AO Switchboard | MSH CI LOGH Switchboard Svcs | Donovan-Taylor,Chloe | PS-11      | Metro South     | P         | ZHR_UPLOAD_FORMS        |         |
| 15480560         | Smart Leave Request                             | 388372    | 32002276 | 72010875  | 20/02/2024 | 20/02/2024 | Completed       | 1/03/2024       | 16090527EA951EEEB3F1DAD735E25618  | inboxdetail-display | Leave         | Shepherd, Cory | AO Switchboard | MSH CI LOGH Switchboard Svcs | Shepherd,Cory        | PS-11      | Metro South     | U         | ZHR_F_LEAVE_APPLICATION |         |
| 15848692         | Smart Leave Request                             | 388372    | 32002276 | 72010875  | 27/03/2024 | 25/03/2024 | Completed       | 27/03/2024      | 028C8CF6765D1EEEBAF8687DC8E4905E  | inboxdetail-display | Leave         | Shepherd, Cory | AO Switchboard | MSH CI LOGH Switchboard Svcs | Donovan-Taylor,Chloe | PS-11      | Metro South     | U         | ZHR_F_LEAVE_APPLICATION |         |
| 15849573         | Attendance Variation and Allowance Claim (AVAC) | 388372    | 32002276 | 72010875  | 27/03/2024 | 18/03/2024 | Completed       | 1/04/2024       | 16090527EA951EDEBAF8FE077E705248  | Forms-Upload        | AVACs         | Shepherd, Cory | AO Switchboard | MSH CI LOGH Switchboard Svcs | Donovan-Taylor,Chloe | PS-11      | Metro South     | P         | ZHR_UPLOAD_FORMS        |         |
| 15969838         | Attendance Variation and Allowance Claim (AVAC) | 388372    | 32002276 | 72010875  | 9/04/2024  | 30/03/2024 | Completed       | 11/04/2024      | 028C8CF6765D1EDEBDC332B8B7618D10  | Forms-Upload        | AVACs         | Shepherd, Cory | AO Switchboard | MSH CI LOGH Switchboard Svcs | Donovan-Taylor,Chloe | PS-11      | Metro South     | P         | ZHR_UPLOAD_FORMS        |         |
| 16326886         | Attendance Variation and Allowance Claim (AVAC) | 388372    | 32002276 | 72010875  | 15/05/2024 | 7/05/2024  | Completed       | 16/05/2024      | 16090527EA951EEF84CD1578FA599A18  | Forms-Upload        | AVACs         | Shepherd, Cory | AO Switchboard | MSH CI LOGH Switchboard Svcs | Donovan-Taylor,Chloe | PS-11      | Metro South     | P         | ZHR_UPLOAD_FORMS        |         |
| 16450619         | Attendance Variation and Allowance Claim (AVAC) | 388372    | 32002276 | 72010875  | 28/05/2024 | 30/03/2024 | Part Completed  | 30/05/2024      | 16090527EA951EEF878ECC5E45DE88E5C | Forms-Upload        | AVACs         | Shepherd, Cory | AO Switchboard | MSH CI LOGH Switchboard Svcs | Donovan-Taylor,Chloe | PS-11      | Metro South     | P         | ZHR_UPLOAD_FORMS        |         |

Search Results (7)



| Process Number | Request Type                                    | Employee                | Position                  | Organisation                            | Submission Date | Effective Date | Status         | Processing Date |   |
|----------------|-------------------------------------------------|-------------------------|---------------------------|-----------------------------------------|-----------------|----------------|----------------|-----------------|---|
| 16328886       | Attendance Variation and Allowance Claim (AVAC) | Shepherd, Cory (388372) | AO Switchboard (32002276) | MSH CI LOGH Switchboard Svcs (72010875) | 15.05.2024      | 07.05.2024     | Completed      | 16.05.2024      | > |
| 16450619       | Attendance Variation and Allowance Claim (AVAC) | Shepherd, Cory (388372) | AO Switchboard (32002276) | MSH CI LOGH Switchboard Svcs (72010875) | 28.05.2024      | 30.03.2024     | Part Completed | 30.05.2024      | > |
| 15969838       | Attendance Variation and Allowance Claim (AVAC) | Shepherd, Cory (388372) | AO Switchboard (32002276) | MSH CI LOGH Switchboard Svcs (72010875) | 09.04.2024      | 30.03.2024     | Completed      | 11.04.2024      | > |
| 15848692       | Smart Leave Request                             | Shepherd, Cory (388372) | AO Switchboard (32002276) | MSH CI LOGH Switchboard Svcs (72010875) | 27.03.2024      | 25.03.2024     | Completed      | 27.03.2024      | > |
| 15849573       | Attendance Variation and Allowance Claim (AVAC) | Shepherd, Cory (388372) | AO Switchboard (32002276) | MSH CI LOGH Switchboard Svcs (72010875) | 27.03.2024      | 18.03.2024     | Completed      | 01.04.2024      | > |
| 15480560       | Smart Leave Request                             | Shepherd, Cory (388372) | AO Switchboard (32002276) | MSH CI LOGH Switchboard Svcs (72010875) | 20.02.2024      | 20.02.2024     | Completed      | 01.03.2024      | > |
| 15325947       | Attendance Variation and Allowance Claim (AVAC) | Shepherd, Cory (388372) | AO Switchboard (32002276) | MSH CI LOGH Switchboard Svcs (72010875) | 06.02.2024      | 22.01.2024     | Completed      | 08.02.2024      | > |

Leave Takings Report

Employee Team:  
Include Sub Teams:  
IWFM Only Teams:  
Employee:  
Report Selection Mode:  
Date Selection:  
Date From:  
Date To:

No  
No  
00388372  
General Mode  
Manual  
19/03/2024  
19/03/2024

Leve Category  
Leave Type:  
Leave Status:  
Sort By:  
Requested Leave Hours:  
Comments:  
Show Paramters:

ALL  
ALL  
All  
Employee Number  
No  
No  
Yes

\* Leave Taken (hours) only reflects hours during the leave period containing underlying scheduled shifts

| Employee Team                             | Employee ID | Employee Name  | Leave Category | Leave Type | Time Code | Leave Period Date       | Leave Taken* (Hours) | Leave Status |
|-------------------------------------------|-------------|----------------|----------------|------------|-----------|-------------------------|----------------------|--------------|
| 72010875 LOGH CORP Switchboard Operations | 00388372    | Shepherd, Cory | Sick           | Sick Leave | SCK       | 19/03/2024 - 19/03/2024 | 7.60                 | APPROVED     |



Office of the Chief Executive

Enquiries to: Myla Ruttan  
Principal Lawyer  
Metro South Legal Services  
Telephone: 07 3069 4755

Email: metrosouthlegal@health.qld.gov.au  
Our Ref: K-LM26/729  
Date: 5 June 2026

**Metro South  
Health**

Commissioner Dwyer  
Queensland Industrial Relations Commission  
Level 21 66 Eagle Street Brisbane  
Qld, 4000  
By email: [qirc.registry@qirc.qld.gov.au](mailto:qirc.registry@qirc.qld.gov.au)

Dear Commissioner Dwyer

**WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator**

I refer to the Form 29 – Notice of non-party disclosure (the **Notice**) regarding the above matter. Mr Shepherd is a current employee of Metro South Hospital and Health Service (**Metro South Health**) as Switchboard Operator at Logan Hospital.

The Notice compels Metro South Health to produce various documents that Mr Shepherd claims to require for his Workers' Compensation Appeal.

Metro South Health has complied with some of the Items requested in the Notice as outlined below. In accordance with Rule 64E(4) of the *Industrial Relations (Tribunals) Rules 2011*, our objections to production/compliance with the Notice are also outlined below.

At the outset, it should be noted that Metro South Health is not in receipt of the Applicant's Amended Statement of Facts and Contentions (Form 9A). Throughout the Notice, the Applicant has expressed various opinions and views about the relevance of the documents to the allegations and stressors the subject of the appeal. While Metro South Health's substantiative grounds of objection to compliance with the Notice are outlined below, our ability to determine whether the requested documents are 'relevant' to the proceeding (and therefore give rise to an objection under Rule 64E4(b)) has, to some extent been limited. We submit this ought to be taken into consideration by the Commissioner.

**Items 1 and 2 - SPOK emergency paging export and Aggregate SPOK activation counts**

Metro South Health cannot comply with the request for Items 1 and 2. The requested records do not exist. The system was upgraded in SPOK, and records predating that upgrade were not retained. However, a spreadsheet of recorded MET calls is available for the period 17-18 March 2024.

**Item 3(a) - Complaints received - server side exchange filter**

Metro South Health objects to the production of Item 3(a). The reason for this objection is the expense and inconvenience that Metro South Health will incur (Rule 64E(4)(a)).

*Better together*

All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant.

Metro South Health's core function is to provide health services to the public. Compliance with a request of this date range would require approval from the Health Service Chief Executive to engage external resources and assistance from eHealth Queensland at the Department of Health to review and search individual staff member email accounts. This would have a significant administrative and operational burden. Particularly as the date range requested is so broad (between the period 1 December 2023 to 30 June 2024). In circumstances where the Matter in Issue as pleaded in the Notice relates to "consecutive shifts of 17 to 18 March 2024", Metro South Health submits a search of the requested range and breadth will take an unreasonable amount of time and resourcing and detract from our core functions of providing health care to the community.

### **Item 3(b) - Management discussion of complaints**

Metro South Health relies on the same grounds for objection as for Item 3(a) above.

### **Item 3(c) - Consequential changes to operating procedures**

Metro South Health cannot comply with the request for Item 3(c) because there have been no 'consequential' changes to operating procedures over the period requested.

### **Item 4 - FRMS risk assessment record**

Metro South Health cannot comply with the Notice in relation to Item 4. This is because the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training.

### **Item 5 - FRMS training and competency records**

Metro South Health cannot comply with the request in relation to Item 5. The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard.

### **Item 6 – FRMS delegation and governance record**

Metro South Health encloses the attached Role Description for Manager of Switchboard Services.

### **Item 7 - FRMS register entries and switchboard roster expectations**

Metro South Health cannot comply with the Notice in relation to Item 7. This is because the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants.

### **Item 8 – Management System Log in records**

Metro South Health objects to the production of Item 8. The reason for this objection is the expense and inconvenience that Metro South Health will incur (Rule 64E(4)(a)).

Compliance with a request of this date range would require approval from the Health Service Chief Executive to engage external resources and assistance from eHealth Queensland at the Department of Health to review and search individual staff member email accounts. This would have a significant administrative and operational burden, particularly as the date range requested is so broad (between the period 1 December 2023 to 30 June 2024) and a search of the requested

range and breadth will take an unreasonable amount of time and resourcing and detract from our core functions of providing health care to the community. In circumstances where the Matter in Issue as pleaded in the Notice relates to “consecutive shifts of 17 to 18 March 2024”, Metro South Health submits this date range is a reasonable range to search.

Further, the reference to “*Management system login records - Active Directory / Entra ID / Citrix. Native electronic 2024 export of Windows Active Directory, Entra ID and Citrix session-login audit records*” is unreasonably broad (lacking particularity). Metro South Health uses various application platforms and it is not clear which system is being referred to.

#### **Item 9 - Management building access**

Metro South Health objects to the production of Item 9 on the basis that the request lacks relevance, particularity and could affect a person (Rule 64E(4)(b)(c) and (f)). The Switchboard office is collocated in an office area where there are other staff from various departments going through the office area. The switchboard office does not have its own access-swipe access.

The Applicant is a current employee and reports directly to the line manager. The request is unreasonably broad (lacks particularity) and production could have an effect on the line manager.

#### **Item 10 - various**

Metro South Health objects to the production of the documents requested in Item 10. The reason for this objection is the expense and inconvenience that Metro South Health will incur (Rule 64E(4)(a)). Compliance with a request of this date range would require approval from the Health Service Chief Executive to engage external resources and assistance from eHealth Queensland at the Department of Health to review and search individual staff member email accounts. This would have a significant administrative and operational burden. Particularly as the date range requested is so broad (between the period 1 December 2023 to 30 June 2024).

In circumstances where the Matter in Issue as pleaded in the Notice relates to “consecutive shifts of 17 to 18 March 2024”, Metro South Health submits a search of the requested range and breadth will take an unreasonable expenditure of time and resourcing, and detract from our core functions of providing health care to the community.

#### **Item 11 - Appellant's MyHR audit trail - COVID Special Pandemic Leave (Process Reference 15480560**

Metro South Health encloses the following documents in compliance with the request for Item 11

- MyHR report leave submission for period 1 February 2024 to 31 May 2024;
- Leave form evidence of pandemic leave for period 20 to 27 February 2024;
- Leave form for period 20 to 27 February 2024;
- AVAC history for pandemic leave for the period 20 to 27 February 2024.

#### **Item 12 – Comparator MyHR audit trails**

In compliance with the request for Item 12, Metro South Health encloses a complete audit trail of the requested pandemic leave for the period requested for Logan Hospital Switchboard.

Metro South Health otherwise objects to the production of other documents as outlined in Item 12.

This request would require accessing the relevant staff members' supporting evidence of their Special Pandemic Leave requests during the period 1 January 2024 – 30 June 2024. Examples of supporting evidence could be a photograph of a positive COVID test, medical certificate, lab results confirming COVID diagnosis, or letter from their child's school in the event of school closure.

This request is unreasonable in circumstances where the effect of production would have on the other staff members (i.e. breach of their right to their privacy and reputation) and that the proof of COVID test contains confidential and sensitive personal health information of the relevant staff members.

### **Item 13 – Line Manager authority framework – COVID Special Pandemic Leave processing**

In compliance with the request for Item 13, we enclose:

- HR Delegation COVID-19 Pandemic Event – Paid Special Pandemic Leave signed 23 November 2022;
- Pandemic Directive 01/20 – Employment Arrangements in the event of a Health Pandemic
- Implementation Guideline – Directive 01/20 dated 14 April 2020.

### **Item 14 - Text message and electronic communication corpus - Appellant and Line Manager concerning COVID Special Pandemic Leave**

The requested information in Item 14 is not in control or possession of Metro South Health. The line manager was not issued with a Queensland Health mobile device, and as such the SMS messages exchanged between the Applicant and the Line manager relating to the pandemic leave request was made using the line manager's personal mobile device. The Queensland Health retention policy does not apply to employee's personal mobile.

The Switchboard line manager was issued with Queensland Health mobile device in or around the third quarter of 2024.

### **Item 15 - Leave ledger - 19 March 2024**

In compliance with the request for Item 15, we enclose:

- Leave takings report for the Applicant 19 March 2024.

### **Item 16 - AVAC payroll export - Appellant (PRN 15397775 and PRN 15605601).**

In compliance with the request for Item 16, we enclose:

- Daily Staffing variance form for the period 5 to 18 February 2024.
- Daily Staffing variance form for the period 19 February 2024 to 3 March 2024.

### **Item 17 – Comparator payroll export**

Metro South Health objects to the production of Item 17 on the basis of Rule 64E(4)(e). Disclosing the requested information would infringe upon the human rights to privacy and reputation of the team members within the switchboard team, because:

- The staff members' identity can be easily re-identified even if redacted.
- The Logan Hospital Switchboard team is comprised of a small team.
- Given that the Applicant is a current employee within the same team, re-identification of the other team member would create a real risk of harm to their reputation.

### **Item 18 - Communication Book and 15 November 2023 Business Case minutes**

Metro South Health objects to the production of Item 18 on the grounds of irrelevance (Rule 64E(4)(b)). The Notice indicates that the destruction of the record had already been pleaded at Form 9A, Part B, para 2 Stressor I(b) (Form 24, Para 14). In those circumstances, it is difficult to identify the relevance of the present request, given that the issue appears to have already been conceded.

### **Item 19 - Union delegate correspondence - server-side Exchange server**

Metro South Health objects to the production of Item 19 on the basis of Rule 64E(4)(a) and (f).

Metro South Health employed approximately 20,006 MOHRI occupied headcount during the period of the dates of the Notice. The requested documents require searching through these staff's email messages received from Together Queensland. Compliance with a request of this date range and email recipients would require approval to engage external resources and assistance from eHealth Queensland at the Department of Health, resulting in a significant administrative and operational burden. We consider that the date range ought to be narrowed to 17-18 March 2024, limited to emails received from Together Queensland by the Switchboard line manager and their Director, or by members of the Logan Hospital Human Resources team who were employed by and remained with Metro South Health.

Further, any disclosure of correspondence involving Together Queensland would also require consultation with or issuing a production notice to them (as an affected party), if they were included in the email communication.

### **Item 20- Operational HR reaction to PID 24-ESU-1130**

The information requested in item 20 does not exist, as the reference cited in the Notice being "PID24-ESU-1130" commenced in November 2024, which falls outside the specified search period of 13 May 2024 to 31 May 2024.

In the event you have any questions or concerns about this correspondence, I have arranged for a Principal Lawyer from the Metro South Health Legal team to be available to assist. Please contact [metrosouthlegal@health.qld.gov.au](mailto:metrosouthlegal@health.qld.gov.au)

Yours sincerely



Digitally signed by  
Noelle Cridland  
Date: 2026.06.05  
14:54:08 +10'00'

**Ms Noelle Cridland**

Chief Executive

Metro South Hospital and Health Service

Enc. Documents relating to items 6, 11, 12, 13, 15 and 16 of the Notice

## Cory Shepherd\_ECC further information

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**From:** Lyndelle Forrest

[Lyndelle.Forrest@health.qld.gov.au](mailto:Lyndelle.Forrest@health.qld.gov.au)

**To:** [coryshepherd1@hotmail.com](mailto:coryshepherd1@hotmail.com)

[coryshepherd1@hotmail.com](mailto:coryshepherd1@hotmail.com)

**Cc:** LBH Injury Management

[LBH\\_InjuryManagement@health.qld.gov.au](mailto:LBH_InjuryManagement@health.qld.gov.au)

**Sent:** Tuesday 7 July at 10:54

Good morning Cory

I refer to the Employee Capability Checklist (**ECC**), completed by Dr Day Hong Ma of My Doctor Clinic on 3 July 2026 and returned to the Injury Management Team at 2:30pm that day. It is further noted that due to a section of this document being missing, you were asked to resubmit your ECC for consideration, you sent this on Friday at 3:06pm.

While you have been certified fit to return to work effective from 3 July 2026, this certification is subject to reasonable adjustments being made to your duties and hours of work. As the completed ECC was received late on Friday, 3 July 2026, the Health Service was unable to review Dr Hong Ma's medical recommendations at that time to determine whether the recommended restrictions and adjustments could be reasonably accommodated and whether it was safe for you to return to duty.

I can advise that your ECC has now been reviewed and carefully considered. However, before a final decision can be made regarding your return to the workplace, further information is required. Specifically, it is noted that your treating medical practitioner has advised that there are unresolved workplace matters involving line management. At this stage, the Health Service does not have sufficient information to understand the nature of these matters or assess whether they present any psychosocial hazards or risks that may affect your proposed return to work.

The Health Service remains committed to supporting your safe and sustainable return to work, with your health, safety and wellbeing remaining central to that process. Accordingly, further information is required to enable the Health Service to assess any identified risks, determine whether reasonable adjustments can be supported, and ensure that any return to work is planned and managed in accordance with its obligations under work health and safety legislation.

To assist us in expediting consideration of your reasonable adjustments, please provide further clarification and/or reports referenced below, within seven (7) calendar days.

| ECC Recommendation                                                                                                                                                                                                                                                                                                       | Further information required                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b><i>Diagnosis of Major Depressive Disorder with anxious distress, a work-related psychological injury with onset 18 June 2024, with symptoms exacerbated on exposure to identified workplace stressors (complaint handling; being held accountable and blamed for failures of others; unpredictable rostering.</i></b> | <p>The Health Service is seeking to better understand the work-related psychological injury for which you are currently receiving treatment from a psychologist. It is also noted that Dr Day Hong Ma has referenced a report from your treating psychiatrist dated 13 February 2025. To date, the Health Service has not been provided with, nor had the opportunity to review, this report.</p> <p>To enable the Health Service to appropriately consider and address these matters, further information and/or a copy of this report is requested regarding the workplace issues referred to in the ECC and their impact on your capacity for work.</p> |

|                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>Complaint handling</b></p> <p><b>No complaint-handling duties, complaints received at the Switchboard to be logged and redirected, not actioned or resolved by Mr Shepherd.</b></p> | <p>The Health Service understand that the established process for management of complaints is for all patient concerns to be redirection to the Consumer Liaison Services (CLS). There is no expectation for Switchboard operators to manage or deal with these matters. Where a consumer raises concerns in relation to a Switchboard employee, these concerns are referred to the Manager, Switchboard or in her absence, CLS.</p> <p>To understand this concern better and adjustments required, please clarify what features of complaint handling are being referenced and you are expected to resolve within this recommendation.</p> |
| <p><b>Predictable Rostering practices, minimum 10-hour break between shifts</b></p>                                                                                                       | <p>Rosters are generally published with four (4) weeks' notice, on four-week rotation.</p> <p>Occasionally, in extenuating circumstances these might be delayed. However, all rosters are released with a minimum of two weeks' notice.</p> <p>The Health Service is not aware of breaching</p>                                                                                                                                                                                                                                                                                                                                             |

|                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|-----------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                                 | <p>this provision and has not received any Workload Concerns to review, can you please clarify the concerns relating to not providing the minimum break between rostered shifts? Noting that rostering currently provides more than 10-hour breaks between shifts, however, acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred.</p> <p>Please clarify the specific stressors which may exacerbate symptoms.</p> |
| <b>Being held accountable and blamed for failures of others</b> | <p>It is unclear what matters you are being held accountable and blamed for based on the failures of others or what these concerns relate to. To-date the Health Service is not aware of any concerns being raised for appropriate management. Further clarity on this would assist in understanding this matter.</p>                                                                                                                                                                                                                                          |

Until this information is available and has been appropriately assessed, the Health Service is not in a position to safely facilitate your return to normal duties.

Should you have any further questions or concerns, please do not hesitate to contact me via the details below.

Kind regards

Lyndelle Forrest  
Senior Consultant  
Human Resources  
Logan and Beaudesert Health Service  
[Metro South Health](#) | 

e. [Lyndelle.Forrest@health.qld.gov.au](mailto:Lyndelle.Forrest@health.qld.gov.au) | [Chat on Teams](#)  
p. [07 3542 2028](tel:0735422028)  
a. Mon - Fri 7:30am - 4:00pm



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, Turrbal, and Mununjali peoples – and to Elders, past, present and emerging.

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# Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital

## 1. Purpose

The purpose of this document is to reinvigorate the consultation process for a proposed roster for Switchboard Services, Logan Hospital, Corporate Services, Logan and Beaudesert Health Service (LBHS), Metro South Health (MSH).

## 2. Background

On 22 July 2021, Metro South Health (MSH) management, affected staff and Together Queensland representatives commenced negotiating a new roster for Switchboard Services, Logan Hospital.

Over the course of these negotiations, valuable feedback from staff and Together Queensland has been considered and included in numerous draft rosters.

In August 2024, Switchboard Services, Logan Hospital was realigned from Health Information Management Services (HIMS), MSH to Corporate Services, LBHS, MSH.

## 3. Proposed change

Based on the comprehensive feedback to date and acknowledging the passage of time since roster negotiations commenced; LBHS management have developed a new proposed roster (**Attachment 1**) to reinvigorate the consultation process.

The proposed roster is intended to introduce a more equitable roster for Switchboard Services, Logan Hospital staff and includes:

- Redistribution of nights for greater equity based on FTE.
- Rotational roster for predictability and equity to all staff ensuring fair distribution of penalties.
- Extension of the current weekday (Mon-Fri) 0900-1400 five (5) hour shift to a 0700-1500 eight (8) hour shift.
- An additional eight (8) hour shift (1200-2000) on weekdays.
- An additional eight (8) hour shift (0700-1500) on Saturdays, to assist with call volume.
- An additional eight (8) hour shift (0600-1400) on certain days in the roster to provide for Switchboard administration, upskilling employees to provide them with a wider skill base, and more professional development opportunities.

The proposed roster will be trialled for a period of 6 months. At the conclusion of 6 months a review will be undertaken to evaluate the effectiveness.

To support effective operations of rostering and staffing for Switchboard Services, Logan Hospital; rostering principles and information forms part of **Attachment 2**.



#### 4. Ballot and feedback

In accordance with Clause 6.2 of the [Hospital and Health Service General Employees \(Queensland Health\) Award – State 2015](#), agreement between MSH and the union, or MSH and the majority of employees affected must occur.

Agreement is defined as obtaining consent from the majority (50+1%) of affected employees, with employees invited to cast their vote and/or provide feedback via [clicking on this link](#) or scanning this QR Code:



#### 5. Support for affected employees

LBHS is committed to the health, safety, and wellbeing of all our employees and acknowledges change may be a difficult time for affected employees. The following support mechanisms are offered to staff during this time:

- Employees may access the Employee Assistance Program by telephoning TELUS Health on 1800 604 640 and accessing information at <http://qheps.health.qld.gov.au/eap/>.
- Availability of unit management
- If an employee is a member of a Union, please contact your Union Organiser or Delegate who can also provide industrial relations and other guidance and support at this time.

#### 6. Union Contacts

| Contact/ Title           | Name          | Email                                                                                                                                                  | Phone Number |
|--------------------------|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|
| Together Queensland (TQ) | James Douglas | <a href="mailto:james.douglas@together.org.au">james.douglas@together.org.au</a><br><a href="mailto:health@together.org.au">health@together.org.au</a> |              |

#### 7. Proposal on endorsement (after consultation)

Should the proposed roster (**Attachment 1**) be agreed between MSH and the Together Queensland, or MSH and the majority (50+1%) of affected employees, it is proposed the roster be trialled for 6 months, after which an evaluation will be undertaken to review the effectiveness.

In the event agreement is not reached, LBHS commits to working with affected employees and Together Queensland to amicably resolve concerns with a view to reach agreement, prior to the proposed implementation date.

#### 8. Dates

| Date             | Activity                          |
|------------------|-----------------------------------|
| 12 November 2024 | Consultation period opens         |
| 8 December 2024  | Consultation period closes        |
| 16 December 2024 | Feedback considered and addressed |
| 20 January 2025  | Proposed roster implemented       |

9. Approval

| Name                                                                                         |  | Approval  |                                                                                    |
|----------------------------------------------------------------------------------------------|--|-----------|------------------------------------------------------------------------------------|
| Approved to commence consultation:                                                           |  | Signature |  |
| <b>Scott Hughes</b><br>Director<br>Corporate Services<br>Logan and Beaudesert Health Service |  | Date      | 12 / 11 / 2024                                                                     |



| Name                                                    | Week Three |           |           |           |           |           |           | Week Four |           |           |           |           |           |           |
|---------------------------------------------------------|------------|-----------|-----------|-----------|-----------|-----------|-----------|-----------|-----------|-----------|-----------|-----------|-----------|-----------|
|                                                         | Sunday     | Monday    | Tuesday   | Wednesday | Thursday  | Friday    | Saturday  | Sunday    | Monday    | Tuesday   | Wednesday | Thursday  | Friday    | Saturday  |
| FTE avg. Penalties over 28 weeks rotating roster = 1.32 |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| A Existing Perm Appointment                             | 0700-0900  | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 |
| B Existing Perm Appointment                             | 1400-2200  | 1400-2200 | 1400-2200 | 1400-2200 | 1400-2200 | 1400-2200 | 1400-2200 | 1400-2200 | 1400-2200 | 1400-2200 | 1400-2200 | 1400-2200 | 1400-2200 | 1400-2200 |
| C Existing Perm Appointment                             | 2300-0600  | 2300-0600 | 2300-0600 | 2300-0600 | 2300-0600 | 2300-0600 | 2300-0600 | 2300-0600 | 2300-0600 | 2300-0600 | 2300-0600 | 2300-0600 | 2300-0600 | 2300-0600 |
| D Existing Perm Appointment                             | 0700-0900  | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 |
| E Existing Perm Appointment                             | 0600-1400  | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 |
| F Existing Perm Appointment                             | 1500-2300  | 1500-2300 | 1500-2300 | 1500-2300 | 1500-2300 | 1500-2300 | 1500-2300 | 1500-2300 | 1500-2300 | 1500-2300 | 1500-2300 | 1500-2300 | 1500-2300 | 1500-2300 |
| G Existing Perm Appointment                             | 0600-1400  | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 |
| Part Time 0.8 FTE, 64 hr                                |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| A Existing Perm Appointment                             | 0700-0900  | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 |
| Part Time 0.7 FTE, 56 hr                                |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| A Existing Perm Appointment                             | 0700-0900  | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 | 0700-0900 |
| B Existing Perm Appointment                             | 0600-1400  | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 |
| Part Time 0.7 FTE (New)                                 |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| A Perm Appointment (extra night)                        | 2300-0700  | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 |
| Part Time 0.5 FTE (New)                                 |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| A Perm Appointment (extra night)                        | 2300-0700  | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 | 2300-0700 |
| Part Time 0.6 FTE                                       |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| A Existing Perm Appointment                             | 0600-1400  | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 |
| Part Time 0.5 FTE                                       |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| A Existing Perm Appointment                             | 0600-1400  | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 | 0600-1400 |
| Avg penalties over 28 weeks rotating roster = 1.32      |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| Avg penalties over 4 weeks rotating roster = 1.04       |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| Avg penalties over 8 weeks rotating roster = 0.898      |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| Avg penalties over 4 weeks rotating roster = 0.921      |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| Avg penalties over 8 weeks rotating roster = 0.63       |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| Avg penalties over 4 weeks rotating roster = 0.742      |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| Avg penalties over 4 weeks rotating roster = 0.63       |            |           |           |           |           |           |           |           |           |           |           |           |           |           |
| Total Hours                                             |            |           |           |           |           |           |           |           |           |           |           |           |           |           |

## Attachment 2: Switchboard Services, Logan Hospital Rostering Principles and Information

### **ROSTER PRINCIPLES**

- **Shift Swaps:**

Switchboard staff are to provide three working days' written notice and AVAC is to be completed for shift swap requests by staff members and sent to Switchboard Manager for approval. All shift swaps for weekends must be made to management for consideration by the Wednesday prior and management agree to review within 48 hours with written response to requestor. If shift swap requested is not approved, then staff are required to work their original rostered shift.

- An AVAC is to be completed when adjustments need to be made to a rostered shift e.g., Shift swaps.
  - Please ensure all fields are completed and information is correct.
  - For assistance in completing an AVAC please consult the Switchboard Manager.

- **Sick / Emergent Leave:**

To ensure shift coverage can be found it is requested as much notice as possible be given if calling in for sick or emergent leave, particularly for night shifts and early morning shifts, however a minimum of two hours' notice is required unless extraordinary circumstances prevent appropriate notice from being given.

During Business Hours M-F, Switchboard staff are to call through to the Switchboard and ask to be referred/transferred through to the Switchboard Manager, who will take the call and provide coverage for the shift.

After-hours, Switchboard staff are to call through to the Switchboard Oncall for any sick/emergent leave. The Switchboard staff who take the call are then responsible for organising coverage and need to follow the below process. Sick/emergent leave will first be offered to any permanent/temp part-time staff members. If the shift needing to be filled is not congruent with other part time shifts, then the shift will be offered to casual staff. If in the event that a casual is also unavailable, available full-time staff will then be offered overtime, approval from the Switchboard Oncall must be sought prior to a full-time staff member being offered overtime. Once the shift has been covered, a detailed email from the Logan Switch account will need to send to the Switchboard Manager/Oncall outlining who has been called, at what time the call was made who declined/accepted the shift.

- On the days where there is an additional 06:00-14:00 or 07:00-15:00 shift that requires covering of emergent leave, coverage of these shifts is at the discretion of the Switchboard Manager based on operational need. Therefore, contact must first be made with the Switchboard Manager to see if coverage for the shift is necessary.
- When there is a duplicate 06:00-14:00 shift (apricot in colour on the roster) depending on staffing levels in Switchboard and call volume at the time, this shift can be used for switchboard operation and/or for switchboard administration and to up-skill staff, training and provide professional development for switchboard staff.

Below process is to be followed by Switchboard afterhours for sick/emergent leave:

**To be offered following below order**

- Permanent part-time staff – always least amount of shifts gets asked first (up to 9 shifts)
- Temporary part-time staff – always least amount of shifts gets asked first (up to 9 shifts)
- Casual staff – always least amount of shifts gets asked first (up to 9 shifts)

Permanent and Temporary Full-time staff – last option and needs prior approval from Switchboard Manager.

- If there is no one available to work the full shift and need to split shift this also needs to be prior approved by the Switchboard Manager/Oncall
- All emergent leave and sick leave, please email Switchboard Manager/Oncall with shift changes and who has been called, what time the call was made, who declined/accepted shifts. Email needs to be sent from Logan switch account.
- Afterhours coverage needs to be prior approved by Switchboard Manager/Oncall if resulting in overtime. Email follows with shift changes and who has been called, what time the call was made, who declined/accepted shifts. Email needs to be sent from Logan switch account.

### **Meal Breaks**

To ensure Switchboard is manned to an optimal level, it is important to adhere to the scheduled break times as listed below. If for any reason staff are unable to observe these times during a shift, please consult Switchboard Manager, noting the requirement that meal breaks are taken between the third and sixth hours of duty in accordance with section 16 of the Award and rest breaks are to be taken during the first and second half of the working day in accordance with section 17 of the Award. Should staff be requested to work additional hours they are advised to check with Switchboard Manager if they are eligible for a supplementary break. This is dependent on the number of additional hours worked. Noting the relevant section of the Award is section 13.7(c) of the Award as this details when an additional break becomes an entitlement and that is every four hours of continuous overtime.

| Shift Start   | 1 <sup>st</sup> Break | 2 <sup>nd</sup> Break | 3 <sup>rd</sup> Break |
|---------------|-----------------------|-----------------------|-----------------------|
| 06:00-14:00 A | 0800<br>10 mins       | 10:30<br>30 mins      | 13:00<br>10 mins      |
| 06:00-14:00 B | 08:10<br>10 mins      | 11:00<br>30 mins      | 13:10<br>10 mins      |
| 07:00-15:00 A | 9:00<br>10 mins       | 11:30<br>30 mins      | 14:00<br>10 mins      |
| 07:00-15:00 B | 9:10<br>10 mins       | 12:00<br>30 mins      | 14:10<br>10 mins      |
| 12:00-20:00   | 14:00<br>10 mins      | 17:00<br>30 mins      | 19:00<br>10 mins      |
| 14:00-22:00   | 16:00<br>10 mins      | 18:30<br>30 mins      | 21:00<br>10 mins      |
| 15:00-23:00   | 17:00<br>10 mins      | 19:30<br>30 mins      | 22:00<br>10 mins      |
| 22:00-06:00   | 12:00<br>10 mins      | 02:30<br>30 mins      | 05:00<br>10 mins      |
| 23:00-07:00   | 01:00<br>10 mins      | 03:30<br>30 mins      | 06:00<br>10 mins      |

### **ROSTER INFORMATION**

- Penalties have been allocated based on FTE to ensure fair and equitable distribution of penalty shifts across the whole roster.
- In this roster nights are allocated based on proportion of FTE so to be fair and equitable to all Switchboard staff as far as possible and to maximise health safety and wellbeing, work-life balance and to minimise staff fatigue. Noting there is one exception to this rule and there are two new roster lines for a 0.7 FTE and 0.5 FTE which do have extra night shifts rostered (to reduce the number of nights our full-time and part-time staff need to work, providing a more equitable balance)
- This roster is a rotational and cyclic roster. Thus, staff work a line relevant to their FTE, e.g., weeks 1-4 and then they drop down to the line below and work their way through the various lines and back to the top again and repeat. For our part-time lines where there is only one line staff rotate through weeks 1-4 and then back to beginning of the roster pattern in week 1.

- Allocation of lines: Roster lines will be allocated based on payroll number.
- This roster will be trialled for duration of one whole rotation of the fulltime lines, for 6 months. Where we will then review and seek further feedback from staff. However, should there be any significant issues or faults identified in the roster during this trial these will be reviewed as they occur.
- Once implemented this roster will be projected forward for 12 months for staff advanced knowledge of the shifts.
- This roster has been created using principles from the 'Metro South Best Practice Rostering Guideline', which includes designing to mitigate a roster to try and mitigate fatigue, to promote fairness, equity and work-life balance whilst still meeting organisational staffing and service needs.
- Due to call volumes, there will be no reduction in workforce on Public Holidays.

# Consultation outcome

## Proposed Rosters for Switchboard Services, Logan Hospital

December 2024



## 1. About this document

This decision document provides an overview of the proposed roster for Switchboard Services, Logan Hospital, Corporate Services, Logan and Beaudesert Health Service (**LBHS**), Metro South Health (**MSH**).

This document summarises the consultation process undertaken with the affected employees, relevant unions and other key stakeholders. It outlines the decisions that have been made in accordance with government policy and relevant industrial obligations and reflects upon the feedback received and the influence this had on the final decision.

## 2. Consultation process

On the **14 November 2024** a consultation document and proposed roster for Switchboard Services, Logan Hospital was released for consultation. Affected staff, unions and stakeholders were invited to provide feedback by **8 December 2024**.

During this consultation process, all feedback was reasonably considered through a structured and transparent approach of collecting feedback through multiple channels, consideration of feedback and communication of the responses.

## 3. Summary of feedback and responses

A total of **nine (9)** submissions of feedback was received during the consultation period. The feedback themes and responses are provided in **Attachment One**.

## 4. Ballot results

In accordance with Clause 6.2 of the [\*Hospital and Health Service General Employees \(Queensland Health\) Award – State 2015\*](#), agreement between MSH and the union, or MSH and the majority of employees affected must occur prior to changes to a shift roster.

Agreement is defined as obtaining consent from the majority (50+1%) of affected employees, with all affected employees invited to cast their vote via an online Ballot Form.

**17** affected employees were invited to cast a vote, with a total of **17** votes received. The breakdown of votes are as follows:

**14** 'Yes' votes received  
**3** 'No' votes received

## 5. Decision

Following consideration of the feedback and **82%** of affected staff voting '**Yes**', the Director, Corporate Services, LBHS **approved** progressing with the proposed rosters, date effective **20 January 2025**.

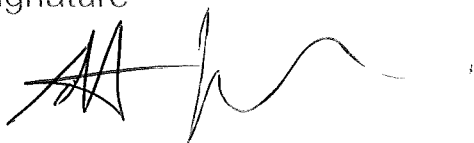
The proposed roster will be implemented on a trial basis for **six months**. On the conclusion of the trial period, affected staff will be invited to provide feedback on the effectiveness of the roster.

## 6. Supporting employees through change

LBHS recognises organisational change can be difficult for affected staff. Affected employees are offered the following ongoing support:

- Free and confidential support through the Employee Assistance Program. Information on the program and how to access it are available at:
  - [Metro South Employee Assistance Program \(EAP\)](#)  
Or by telephoning TELUS Health on 1800 604 640

7. Signature

A handwritten signature in black ink, appearing to be 'S. Hughes', written over a horizontal line.

**Mr Scott Hughes**

**Director**

**Corporate Services**

**Logan and Beaudesert Health Service**

12/12/24

| Feedback received                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Response                     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|
| Happy with this roster - [REDACTED]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Thank you for your feedback. |
| Hi it's [REDACTED] I am very happy with the new roster                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Thank you for your feedback. |
| I agree to trial this roster [REDACTED]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Thank you for your feedback. |
| I'm happy to trial proposed roster, the only way is work the roster and shifts.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Thank you for your feedback. |
| I appreciate your email and for the proposed roster. I am in agreeance with the proposal and happy for this to be allocated. Although I do have concerns that I wish to raise, even though the idea is for this to be a permanent roster. Specifically, I am concerned that staff members that have been allocated to fulfill all their nightshift obligations and subsequently request a reduction or provide a medical certificate for fewer nightshifts, it could disrupt the equilibrium of the roster. This situation may lead to a recurrence of past scenarios, where one half of the staff had their nightshift commitments reduced, while the other half had to bear significantly increased nightshift duties to compensate for the shortage. Such a scenario could pose challenges for those staff members who find themselves with additional nightshifts in place of afternoon or day shifts due to others being unable or unwilling to fulfill their nightshift responsibilities. Is there a plan or pathway in place for this situation if it occurs as it has in the past? Also in accordance to page 1 of the roster proposed, "The proposed roster will be trialled for a period of 6 months. At the conclusion of 6 months a review will be undertaken to evaluate the effectiveness." What parameters would be evaluated in the review to determine the effectiveness of the roster after the 6 months? Thank you for your attention to this matter | <ul style="list-style-type: none"><li>- The effectiveness of the roster after the six-month trial period will be based on staff feedback/staff satisfaction survey.</li><li>- In the event a staff member is unable to work nights due to a medical condition, this will be managed confidentially between the affected employee, Switchboard Manager and in consultation with the LBHS Injury Management and Human Resources teams in accordance with the provisions of the relevant legislation, industrial instruments, and Queensland Health HR Policies.</li><li>- All shifts that require coverage will be managed by the Switchboard Manager in accordance with <a href="#">MSH Best Practice Rostering Guideline</a>. Team members are able to speak to their colleagues and request a shift swap with sufficient notice to the Switchboard Manager.</li></ul> |                              |

*I would like to raise a concern regarding the distribution of night shifts among the .07 lines. I feel that these shifts should be allocated more equitably. Currently, one staff member is assigned as many as 9 night shifts, while others are only allocated 2 or 3. This disparity feels unfair and could be addressed by balancing the shifts more evenly among the team.*

Thank you for your feedback.

- The 0.7fte (new) line was implemented as part of this proposed roster and consists mostly of nightshifts. At the time the temporary incumbent was converted from temporary to permanent, there were no vacancies within Switchboard Services. The affected employee was offered this line and accepted the terms and conditions of the role (primarily night shifts).
- This line was created to eliminate the need for the fulltime/part time staff to work more than four nights per month.

*After looking at the proposed roster as a full time employee I have noted that the full time members have lost seven weekend penalty shifts over a seven month period as you probably already know historically full time team members have always had three weekends a month and can be shown on all previous rosters. We are being asked to take a significant pay cut and I would like to know if this is even a legal request. As full time employees we are the last team members to be asked to do any overtime therefore it would be unlikely we would be able to recoup our loss of earnings and I'm also wondering if the people who have worked on this roster would be prepared to take a pay cut with their own employment ? I have also noted that we are being asked to now do four nights a month and as you can see from previous rosters we have been doing only three. A pay cut and an extra night it hardly seems fair or equitable or not I. The best interest of us as QLD Health employees, i have also noted that there are numerous weeks that full time staff only have one day of in that particular week. I don't feel that this roster has been done with the best interest of full time staff maintaining fatigue management. Kind regards*

Thank you for your feedback.

- This feedback was considered but unfortunately, we are unable to offer full-time staff three weekends per month due to the requirement to roster penalty shifts fairly and equitably across all FTE lines.
- We also have an obligation to consider wellbeing and fatigue, and to avoid a situation where we are asking full-time employees to work proportionally more weekends than other employees.
- Penalties have been allocated proportionate to FTE. Some minor modifications have been made to the full-time line in terms of weekend shifts. This is a rotational, cyclic roster; whilst one fortnight may have less penalties it is evened out over the duration of the four week roster cycle.

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><i>I do not agree to having to take a pay cut, with this roster we are losing 7 penalties. We have lost 4 Saturday shifts and 3 Sunday shifts. With this roster you are forcing a pay cut. Is that legal? The current rostering system we got 3 weekends a month and 3 night shifts. The current rostering system works if done fairly. Which one of you would take a pay cut? We have been doing 3 nights a month for months now this roster goes to 4 nights and less money. Is the union involved with this roster? Isn't this for permanent staff casual staff don't get to agree to this. Why can't we submit an email where we can read what we have written? It seems that we have a lot of late starts there was a survey done where all staff preferred the same start time which was at the early times. 6am 1400 pm 22.00 pm. Don't say we can swap shifts that is not as easily done. There are weeks where we have only one day off how is that fatigue management? How is my pay going to be boosted when we are the last ones to get any overtime? Please don't lie to us if you force us to trial this wage theft you have no intentions of changing it or stopping it. Can we speak to the union representatives about the loss of income for starters. The current rostering system could work if favouritism wasn't a factor and used to bully people.</i></p> | <p>Thank you for your feedback.</p> <ul style="list-style-type: none"> <li>- Together Queensland were invited to provide feedback as part of this consultation and ballot process.</li> <li>- The proposed roster has been developed after many years of consultation and feedback from previous rejected rosters and in accordance with the provisions of <a href="#">Hospital and Health Service General Employees (Queensland Health) Award – State 2015</a> and the MSH Best Practice Rostering Guideline.</li> <li>- Start times and shift cross overs are in place to support effective shift handover and to mitigate against inadequate coverage, should a staff member be delayed in commencing their rostered shift due to unforeseen circumstances (traffic etc.). This also aligns with other MSH Switchboard Services who roster a variety of shifts to cover all hours</li> <li>- Clause 15.1(j) provides the basis on which rostered days off have been considered for this proposed roster: <ul style="list-style-type: none"> <li>(j) <i>Rostered days off - where work is performed on other than a Monday to Friday basis</i> <ul style="list-style-type: none"> <li>(i) <i>Unless prescribed elsewhere in this Award, all employees shall be entitled to not less than two whole consecutive rostered days off duty each week.</i></li> <li>(ii) <i>In lieu of two whole rostered days off in each week, an employee may be allowed in each fortnightly period either one rostered day off in one week and three consecutive rostered days off in the other week, four consecutive rostered days off or two groups of two consecutive rostered days off.</i></li> </ul> </li> <li>(k) <i>Two consecutive rostered days off, one at the end of one week and one at the beginning of the following week may be counted as meeting the requirements of clause 15.1(j)(i).</i></li> </ul> </li> </ul> |
| <p><i>Loss of wages with this roster so unfair. You all take a pay cut as well.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | <p>Thank you for your feedback.</p> <ul style="list-style-type: none"> <li>- The proposed roster has been developed to support fair and equitable rostering and remuneration across all affected staff, proportionate to FTE.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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- Further, we also have an obligation to consider wellbeing and fatigue, and to avoid a situation where we are asking full-time employees to work proportionally more weekends than other employees.
-

## Switchboard Roster Feedback - For Delegates

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**From:** Heath Moran [heath.moran@together.org.au](mailto:heath.moran@together.org.au)

**To:** Carolyn Jeffrey

[Carolyn.Jeffrey@health.qld.gov.au](mailto:Carolyn.Jeffrey@health.qld.gov.au), Patricia

Conaghan [Patricia.Conaghan@health.qld.gov.au](mailto:Patricia.Conaghan@health.qld.gov.au),

Cory Shepherd [Cory.Shepherd@health.qld.gov.au](mailto:Cory.Shepherd@health.qld.gov.au)

**Cc:** Billy Colless [billy.colless@together.org.au](mailto:billy.colless@together.org.au)

**Sent:** Monday 3 November 2025 at 10:57

**This email originated from outside Queensland Health.  
DO NOT click on any links or open attachments unless  
you recognise the sender and know the content is safe.**

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Good morning DELEGATES!

Firstly, congratulations to you all on being endorsed to become workplace delegates!

You'll be receiving some invites to attend our delegate catchups as well as our monthly Local Consultative Forum.

In relation to the switchboard roster feedback, I've attached Chloe's feedback in a PDF attached in this email. Please note that while we're in negotiations with Chloe, this is not for wider distribution.

I have also attached the Consultation paper – which Chloe advised on Thursday last week has the amount of shifts each day that Switch can currently allocate.

I'd be eager to hear your feedback, and I'd like to come together this week to discuss your thoughts. I'll be in the hospital on Thursday around midday for a staff orientation so if you'd like to meet up on Thursday to discuss, please let me know what works for you. Once we've discussed it further amongst ourselves, I'll book in a time to meet with Chloe – likely next week (noting I'll be in Melbourne for work, Billy will be able to attend in my absence).

I look forward to hearing back from you.

Yours in Union,

## Heath Moran

Organiser – South Team



0414 225 851

[heath.moran@toget](mailto:heath.moran@together.org.au)

[her.org.au](http://her.org.au)



Looking for information? Check the [Member Portal!](#)

View our [Privacy Policy](#) here.

Together recognises and respects the Aboriginal and Torres Strait Islander peoples of the lands upon which we undertake our work to promote and defend the interests and values of members. We acknowledge the Traditional Owners and custodians who have cared for this country for thousands of years.

# Reasons for decision

24 October 2024

Our reference: 69983

Insurer reference: S23LW142013

Direct telephone: 07 3842 2787

Dear Mr Shepherd

## RE: Application for review - Mr Cory Shepherd

I refer to the application for review received by the Workers' Compensation Regulator on 16 September 2024 in relation to the decision by WorkCover Queensland (WorkCover) to reject your application for compensation (the application).

### Review decision of 22 October 2024

I have confirmed the decision of WorkCover to reject your application for compensation in accordance with section 32 of the *Workers' Compensation and Rehabilitation Act 2003* (the Act).

### Background

You submitted an application for compensation to WorkCover on 1 July 2024 for a psychological injury sustained on 18 June 2024 as a result of workplace stress and bullying. At the relevant time, you were employed on a full-time basis as an Administration Officer by Metro South Hospital and Health Service, undertaking your duties at Logan Hospital.

WorkCover investigated your application and on 13 September 2024 issued written reasons for their decision to reject your application pursuant to section 32 of the Act. In arriving at this decision, WorkCover identified four factors causative of your psychological injury – manager's failure to follow rules, management's failure to take action regarding an ethical complaint made by you, your payment being withheld, and roster guidelines not being followed. WorkCover determined that the first and third factors were unable to be substantiated, while the second and fourth factor amounted to reasonable management action taken in a reasonable way. This meant to the extent that your injury arose out of your employment where employment was a significant contributing factor, it arose out of reasonable management action taken in a reasonable way. Consequently, the

# Reasons for decision

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exclusionary provisions in section 32(5) of the Act were enlivened and your psychological injury was excluded from the definition of 'injury' according to section 32 of the Act. As a result, your claim was not one for acceptance.

It is this decision you seek to be reviewed.

## **Grounds for review**

On 16 September 2024, you lodged an application for review with the Workers' Compensation Regulator, requesting a review on the following grounds:

- there was significant oversight by WorkCover in the handling of your claim
- you have additional documentation to provide
- WorkCover failed to consider the entirety of the evidence
- you have several ongoing workplace concerns.

In addition to the application for review, you also submitted:

- copy of email of Ms Taegan Griffiths, employee at Together ASU, dated 24 July 2023
- copy of your email to Ms Griffiths dated 24 July 2023
- copy of your email to Together ASU dated 18 May 2024
- copy of email of Ms Heather Hayes, Organising Director at Together ASU, dated 20 May 2024
- annotated email of Ms Hayes dated 20 May 2024
- your email to Ms Zaida Variava, employee at Together ASU, dated 16 June 2023
- copy of your email to WorkCover dated 26 August 2024 regarding a union delegate
- copy of the first page of WorkCover's reasons for decision dated 13 September 2024
- annotated response of employer dated 15 August 2024
- copy of various text messages between you and Ms Chloe Taylor, your Line Manager
- annotated extracts from undated documents.

## **Review process**

The review is an independent administrative process or a 'review on the papers'. This means that as the decision-maker, I have considered the material on WorkCover's claim file (S23LW142013) and any new information provided by you or another party during the review process.

All of the evidence including submissions, the application for review and WorkCover's file has been considered, although I may not specifically refer to all of the documents in my review decision.

# Reasons for decision

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## **Evidence considered**

In undertaking this review, I have considered all of the evidence on WorkCover's file as well as the evidence provided to the Workers' Compensation Regulator, and in particular the following documents:

- application for compensation, lodged 1 July 2024
- reasons for decision of WorkCover dated 13 September 2024
- application for review, lodged 16 September 2024
- WorkCover's communications report (communications report), as at 18 September 2024
- hospital and health service general employees (Queensland health) award – State 2015
- recruitment and selection policy dated June 2020
- fatigue leave following weekends and/or rostered days off policy dated June 2020
- fatigue risk management policy dated February 2021
- union encouragement policy dated August 2021
- corrupt conduct complaint form 13 May 2024
- attendance variation and allowance claim signed by Ms Taylor dated 28 May 2024
- validation of claims older than 3 months form signed by Ms Taylor dated 28 May 2024
- statement provided by you on 12 July 2024
- two statements of Ms Carolyn Jeffrey, Switchboard Operator, dated 18 Jul 2024 and 1 August 2024
- two responses provided by you dated 9 August 2024
- two responses provided by you dated 19 August 2024
- various emails sent by you to WorkCover
- various emails between you and other employees
- various switchboard services rosters
- various annotated pay advices
- various text messages between you and Ms Taylor
- annotated employer's response dated 15 August 2024 submitted by you at review
- two responses of the employer dated 15 August 2024 and 6 September 2024
- three work capacity certificates of Dr Peter Hawes, General Practitioner, dated 1 July 2024, 11 August 2024, and 8 September 2024
- work capacity certificate of Dr Ki Pang, General Practitioner, dated 7 August 2024.

## **Issues for determination**

Section 108 of the Act states that compensation is payable for an 'injury' sustained by a 'worker'.

# Reasons for decision

It is not disputed that you are a 'worker' within the meaning of the Act. This is not an issue for review.

The issue to be decided at review is whether you sustained an 'injury' within the meaning of section 32 of the Act. If the provisions of section 32(5) of the Act are satisfied, they exclude a psychiatric or psychological condition from the definition of 'injury' within section 32(1) of the Act.

Therefore, I must determine whether it is more probable than not that:

- you sustained a personal injury
- the personal injury arose out of or in the course of your employment
- the employment is a significant contributing factor to the injury
- the injury arose out of or in the course of:
  - reasonable management action taken in a reasonable way by the employer in connection with your employment
  - your expectation or perception of reasonable management action being taken against your
  - action taken by WorkCover in connection with your application for compensation.

I will now consider each element in turn.

## **Did you sustain a personal injury?**

The work capacity certificate of Dr Hawes dated 1 July 2024 stated you sustained anxiety and stress. This was maintained in the work capacity certificate of Dr Pang dated 7 August 2024 and two work capacity certificates of Dr Hawes dated 11 August 2024 and 8 September 2024.

Having regard to the medical evidence, and in the absence of evidence to the contrary, I am satisfied you sustained a personal injury of a psychological nature.

## **Did the personal injury arise out of or in the course of your employment and was the employment a significant contributing factor to the injury?**

The communications report details a conversation you had with WorkCover on 4 July 2024, whereby you reported your psychological injury was caused by workplace bullying, predominantly with the manager and director.

In the statement provided by you on 12 July 2024 you highlighted various issues which you believed were causative of your psychological injury. You first indicated the employer

# Reasons for decision

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communicated they would provide accredited payment for a recognised Australian education, and other additional payments, but you never received either despite providing to the employer your accredited diploma of fitness. You noted you made multiple requests for these payments, which were treated with hostility and declined. You then expressed Ms Taylor was determined to make you feel undervalued and undermined by her actions, which included spreading rumours about you. You also noted that while you were employed as a casual, you signed an agreement allowing for an 8-hour break between your shifts, even though the standard provided for a minimum break of 10 hours or an entitlement to fatigue pay.

Another concern which you expressed was the lack of advertising for the position for which Ms Cherie Abbott, employee in Switchboard Services team, was hired, which prevented other employees from applying. A major issue for you was the rostering. You indicated there was a reduction in penalty shifts, an increase in fatigue and your experience was undervalued in favour of less qualified individuals due to bias and friendships. Your requests for days off were ignored while other employees were granted shifts as per their requests. The roster was not fairly allocated, and employees favoured by Ms Taylor received shifts according to their requests while you were subjected to arbitrary scheduling.

Following a complaint made by you, you noticed you were treated differently, and your questioning of policies and procedures increased tension. You also disclosed a specific incident which you believed contributed to your injury. You corrected a mistake and noted the importance of verifying numbers in the communication book, but the note was torn out the following day and you were accused by Ms Taylor and her friend of having malicious intent in writing the note. You expressed it seemed that all actions of the director and the manager were inconsistent with legislation, policy and interest, and any concerns raised by you were met with grief. You then provided another example of an employee being hired for a newly created position, when there was no consultation, advice, transparency or equal opportunity with respect to the creation and hiring of this position. You then continued to express concerns regarding further payment issues. During your employment you also raised the absence of a union delegate and expressed your interest in obtaining training to become one. After some time, Ms Taylor told you no one replied to her advertisement of the role, even though you noted you expressed your interest in the position via email to Ms Taylor and you were never directly asked about you taking the role. You stated Ms Taylor was avoiding appointing you as the delegate on purpose.

# Reasons for decision

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While I acknowledge the causative factors identified by you, I am also mindful of the finding in *Rowe v Q-COMP*,<sup>1</sup> that an injured worker is not always best placed to identify the cause of a psychological injury and that factors identified by an injured worker may not be found upon investigation by health professionals to be real or actual factors contributing to the injury. Accordingly, I must consider the medical evidence concerning whether these factors were causative of your injury.

The work capacity certificate of Dr Hawes dated 1 July 2024 attributed your psychological injury to harassment at work, specifically the ongoing violation of workplace rules and victimisation of you by bosses. This was maintained in all three later work capacity certificates.

According to the communications report, WorkCover spoke with Dr Hawes on 2 September 2024, whereby Dr Hawes opined your psychological injury was caused by management failing to follow rules, management's lack of action in response to your complaint, the withholding of your payment and non-adherence to and manipulation of the roster.

Upon review of the available factual and medical evidence, I find the following factors have been nominated by you and identified by your doctor as medically causative of your psychological injury:

Factor 1: Non-adherence to rules by management

Factor 2: Management action taken in response to your complaint

Factor 3: Withholding of pay

Factor 4: Non-adherence to and manipulation of the roster guidelines

I must now determine whether these factors are able to be substantiated.

## Factor 1: Non-adherence to rules by management

In the overview of events provided by you to WorkCover on 12 July 2024, outlined management did not adhere to rules in the following aspects:

- hired employees without advertising the position and providing other employees with an opportunity to apply
- failed to obtain a union delegate, which was a departmental requirement
- did not keep employees accountable, including managers, who failed to follow rules

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<sup>1</sup> [2009] QIRC 9; 190; QGIG 93.

# Reasons for decision

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- Ms Taylor and Ms Stibbard allocated themselves as the on-call contacts after hours without departmental input
- issued directives without consultation or input.

I note the supplied Recruitment and Selection policy dated June 2020 records, allows for direct appointments to be made at the discretion of the delegate.

The supplied Union Encouragement policy dated August 2021 states the employer recognised the constructive role of democratically elected union delegates and that role was to be formally recognised, accepted and supported on conditions that unions notify the employer of such delegates.

You supplied several emails in support of your application which I have summarised below:

On 22 July 2021, Ms Tammy Reese, Director, emailed staff members regarding the Business Case for Change, which she attached to the email. She invited feedback from employees and relevant unions regarding the proposed changes and noted the consultation period was open from 22 July 2021 until 5 August 2021, following which the feedback would be reviewed and considered prior to the implementation plan being drafted.

In an email dated 8 December 2021, Ms Reese informed staff members that Ms Sandra Johnstone, Switchboard Line Manager at the time, was extending her leave and then going on secondment, which meant Ms Reese was looking to backfill her position temporarily for three months as soon as possible. Ms Reese stated all staff were welcome to apply and in the meantime, she would continue to act as line manager.

In an email dated 27 October 2022, Ms Reese invited employees to attend a consultation meeting regarding the proposed organisational change.

The email of Ms Reese dated 2 November 2022 attached another Business Case for Change and encouraged staff members to review it and provide feedback regarding it. She confirmed the consultation period was open and would close on 16 November 2022.

An email of Ms Taylor dated 16 February 2023, sent at 6:03 am, informed employees of her changed hours in the office that day.

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In emails dated 8 May 2023 and 9 May 2023, Ms Taylor informed the team she was not attending the office on those days and to contact her by telephone for anything urgent.

On 12 May 2023, Ms Taylor emailed the team and confirmed she would be in the office the following Monday.

Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, emailed the staff members on 18 July 2023 to provide an update with respect to her role. She explained her role was a project role, which was a temporary position that focused on fixing the database used by the switchboard. She informed that while she fixed it, she would be removing everyone's access to it, and asked for anyone who needed to amend, add or remove entries, to directly contact her or Ms Taylor.

In an email dated 23 August 2023, Ms Taylor stated she was a full-time employee and worked flex hours, and acknowledged she recently had been starting and finishing at different times. She stated she was trying to set a routine around her children. She noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm, and when there were any changes to her times or presence, she would always inform Ms Reese and the team regarding it.

Ms Taylor emailed the team on 1 September 2023 and informed she would be on leave from 13 September 2023 until 18 September 2023. During this time, she directed employees to contact Ms Stibbard, and Ms Taylor if they cannot reach Ms Stibbard.

On 12 September 2023, Ms Taylor emailed the team and reminded she commenced her leave on 13 September 2023 until 17 September 2023.

The email of Ms Taylor dated 14 November 2023 stated she would be attending the office at around 10:30 am that day.

On 16 November 2023, Ms Taylor informed staff members, via email, that she had a planned day off that day.

The email of Ms Taylor dated 30 November 2023 informed she would be away the following day as it was her planned leave day.

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On 15 April 2024 Ms Taylor emailed the team attaching the updated rosters. She wrote herself and Ms Stibbard added after-hours on call and the roster showed who was on call after hours.

Ms Taylor explained employees were able to contact Ms Taylor or Ms Stibbard after hours for any queries.

On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry.

Ms Taylor emailed the team on 17 May 2024 and clarified when she would be in the office, when she would be working from home and when she was contactable.

On 18 May 2024, you emailed Together ASU and expressed the switchboard department did not have a designated union delegate, and in these circumstances, you volunteered to become the delegate. To do so, you required training, and thus requested access to paid union training from Together ASU.

You received a response from Together ASU via email on 20 May 2024. It was stated the team would contact you regarding the training and becoming a delegate.

Ms Reese emailed employees on 30 May 2024 to provide an update regarding organisational change. She stated the feedback with respect to the Business Case for Change had been invaluable and the Implementation Plan was at the time with Human Resources for final review as per standard process and would proceed to the delegate for consideration. Further, Ms Reese informed Ms Taylor, who had been backfilling the Switchboard Manager role, had been permanently appointed through a higher classification review process following her temporary appointment from an expression of interest in March 2022. The employer planned to advertise the vacant AO3 Administration Officer position in the coming weeks.

The email of Ms Taylor dated 18 June 2024 informed staff members of her work arrangements.

You supplied to WorkCover a statement of Ms Jeffrey dated 18 July 2024 which submitted Ms Taylor was handed her position and was raised from an AO4 to an AO5 with no formal process, and no one was able to apply for this position. Ms Jeffrey wrote that since Ms Taylor commenced the manager role, her actual start and finish times were never transparent. She came when she liked and left in less than 8.5 hours.

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In the statement dated 1 August 2024, Ms Jeffrey reiterated Ms Taylor came to the office late and left early. Ms Jeffrey asserted she was committing fraud, but it was ignored, and concluded management did not follow the code of conduct or support their staff.

In your procedural fairness response dated 9 August 2024, provided to WorkCover, you stated the following issues in the workplace required addressing: hiring of staff members, lack of union delegation, bullying, addressing changes in workplace cooperatively and overall adherence to policies. You specified the employer did not follow many principles in the HHS Act and EB11 agreement, particularly section 1.9 of the agreement. Further, Ms Taylor consistently removed the first aid kit in the department and placed it in non-allocated spots.

In your further response dated 19 August 2024, you wrote Ms Taylor paid herself for her 30-minute meal break which was supposed to be unpaid. Further, you noted Ms Taylor was very selective about who she updated regarding her office hours.

In a separate response also dated 19 August 2024, you expressed the proposal for a business case for change was not compliant with evidence-based practice or the FRMS. You stated the changes made were questionable and showed unfair bias and corruption, and the change in the business structure occurred without consultation. You reaffirmed Ms Stibbard was hired without consultation and without a formal recruitment phase prior to her commencement, which removed the opportunity for others to apply and created an unfair workplace. You asserted the first time the role was advertised, Ms Stibbard was confident she would be assigned the newly created role as she obtained it before its existence, and it was not advertised to the public or staff beforehand. You then referred to Ms Taylor and Ms Stibbard initiating themselves to be on call after hours. You felt this was a plot to obtain additional income, which was a misuse of government funds.

You emailed WorkCover on 26 August 2024 and expressed that under the EB11 agreement, a union representative was to be provided by the employer for the employees to raise their concerns, but when you informed Ms Taylor and Ms Reese of your situation, they could not identify the current delegate. Even though you offered to complete the necessary training to become the delegate, and a group email was sent to allow everyone the opportunity to participate, Ms Taylor later confirmed no one had responded. You concluded the department took no further action regarding you becoming the delegate or to provide you with a union delegate.

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In an email to WorkCover dated 29 August 2024, you referred to Ms Taylor's email dated 15 April 2024 regarding the after hours on call, and stated Ms Taylor and Ms Stibbard decided to implement this without consultation.

You emailed WorkCover on 30 August 2024 and in referring to the email of Ms Taylor dated 19 April 2024 regarding the new process for data entry, commented she failed to consult regarding this new process.

During the review, you submitted an annotated response of the employer, whereby you wrote, in relation to the union delegate issue, that Together ASU forwarded the employer the forms for you to become the delegate, but the employer discriminated against you and did not action this.

The response of the employer dated 15 August 2024 referred to various issues raised by you. The employer first explained the union delegate nomination and election process was managed by the respective union who provided coverage, which meant your concerns with respect to it were not the responsibility of the employer. The employer referred to the Union Encouragement policy in support of this. It was then submitted the employer conducted all appointments in accordance with their Recruitment and Selection policy. The selection process for Ms Danielle Cook, previous Switchboard Manager, and Ms Taylor were advertised to the entire Switchboard team through an Expression of Interest process and an interview process was undertaken, at the end of which it was decided Ms Cook and Ms Taylor were suitable for the position and were given the opportunity to job share. Ms Taylor was subsequently appointed to the Switchboard Manager role according to the Public Sector Commission Directive 03/23 Review of acting or secondment at higher classification level. With respect to your concern regarding Ms Taylor not working her required hours, the employer wrote this was incorrect and Ms Taylor consistently fulfilled her contracted hours each week and adhered to the employer's flexible working arrangement policy. It was noted that when Ms Taylor would start work late or finish early, she communicated this to her team, and there were no concerns regarding her punctuality or attendance.

I appreciate that you perceived various management actions to be taken in violation of rules. However, I find there is insufficient evidence to substantiate this. With respect to the hire of employees, I find the employer did not breach the rules and adhered to their policies. The employer also was not responsible for obtaining a union delegate, but rather was responsible for merely allowing one to be present, and thus also did not breach rules by the lack of a delegate due to no fault on their part. No evidence has been provided in support of your assertion that management did not keep employees accountable for their rule-breaking activities and

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consequently I find this also was not substantiated. Finally, you did not provide evidence in support of your submission that changes made to processes and structures were in violation of rules, and the employer confirmed the changes were valid. Therefore, I find this factor is unable to be substantiated.

## Factor 2: Management action taken in response to your complaint

You filled out a corrupt conduct complaint form on 13 May 2024, whereby you stated it appeared Ms Taylor was engaging in fraudulent activities by claiming unnecessary on-call hours in the department and logging on from home when she was not present. You further alleged Ms Taylor displayed inappropriate behaviour, such as harassment, bullying, dishonesty, and an autocratic management style.

On 15 May 2024, Ms Janelle Loader, Director of the Ethical Standards Unit, emailed you to acknowledge receipt of your complaint form. She noted that since you had further information to provide, they would wait for further details from you to progress the assessment.

Ms Murray Brooks, Principal Investigator, emailed you on 20 May 2024 to follow up further information regarding your complaint. She advised that to progress the assessment of the broad concerns raised by you, they required particulars for each matter.

On 27 May 2024, Ms Brooks emailed you regarding your complaint. She stated that in the absence of any particulars relevant to your allegations, they finalised an assessment of the matter and determined it did not raise reasonable suspicion of corrupt conduct and would refer your concerns and complaints to Human Resources. However, they invited you to provide further information if you wished to in the future.

In an undated email, Ms Reese scheduled a meeting with you at 10:00am on 12 July 2024 to discuss the outcome of your complaint.

In an email dated 12 July 2024, Ms Reese stated she rescheduled the meeting to 16 July 2024 since you were away on that day.

The overview provided by you on 12 July 2024 stated that following the complaint, you noticed a change in your treatment, and you believe your questioning of policies and procedures was perceived as a challenge to your manager and director, leading to further tension.

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In your response dated 19 August 2024, you asserted you raised concerns regarding corruption and actions of Ms Taylor. It appeared the claims were taken seriously due to the response you received on 20 May 2024 and the subsequent closing of the case on 27 May 2024. However, you found the short period within which the case was closed concerning. Due to the great importance of the matter, and the Unit's reliance on the information presented by you, you assumed there was no formal investigation. You noted that due to the short timeframe and your work commitments, you were unable to gather all the necessary evidence to support your claims.

In their response dated 15 August 2024, the employer stated you submitted a complaint on 16 May 2024 to the Ethical Standards Unit broadly outlining potential inappropriate behaviours of Ms Taylor, but you provided no additional information when it was requested. The Unit subsequently determined the information reported did not provide any reasonable avenue of further enquiry and the allegations as initially provided did not raise a reasonable suspicion of corrupt conduct. Ms Reese attempted to contact you to discuss your allegations and concerns, but you did not respond to her several attempts to meet. The employer concluded that due to your refusal to participate in the process, they were unable to take any action to resolve your concerns.

In considering the evidence, I find you submitted a complaint regarding Ms Taylor and the employer took steps in response to receiving your complaint. However, the evidence does not support that no action was taken by management in response to your complaint. Therefore, I find this factor is able to be substantiated to the extent that you lodged a complaint, and some action was taken by management to review it, but not to the extent that there was no response to it.

## Factor 3: Withholding of pay

In an email to Ms Taylor dated 8 April 2024, you requested a formal review of your payment for the period between 8 March 2024 and 31 March 2024. You expressed you did not receive payment for the Saturday public holiday on which you were not required to work and were not compensated with the correct penalty rates for your Monday shift, 6:00 am to 2:00 pm, following the Sunday shift, 2:00 pm to 10:00 pm.

Ms Elaine Grant, Client Service Officer in payroll, emailed Ms Taylor on 3 May 2024 explaining the issues with your pay.

On 10 May 2024 you emailed payroll and expressed your concerns regarding the challenges faced by Ms Taylor in relation to payment processing.

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Payroll emailed you on 13 May 2024, and confirmed they could not see any issues had been corrected. They instructed you to speak with your manager to correct the issues through the submission of an AVA.

In an email to you dated 21 May 2024, Ms Taylor stated she was awaiting payroll confirmation about a few issues and as soon as she received it, she would submit an AVAC for the next pay run.

In the overview provided by you on 12 July 2024, you outlined various issues regarding your pay. These included the following:

- despite providing an accredited diploma of fitness, you did not receive the payment for recognised Australian education, as was communicated you would, and also did not receive additional payments
- you did not receive income for time off work due to Covid even though you provided the necessary paperwork for this entitlement
- Ms Taylor cancelled your shift without pay when you informed her in advance that you would be delayed in commencing work by approximately 1 hour
- you were denied fatigue pay due to an agreement you signed while you were employed on a casual basis, and which was inconsistent with your later signing of the full-time contract.

In an email to WorkCover dated 18 July 2024, you wrote Ms Taylor had been withholding payments for overtime you completed.

The employer, in their response dated 6 September 2024, submitted there was no evidence to suggest pay was withheld from you in accordance with your entitlements. They confirmed corrective action was taken by Ms Taylor as per internal processes to correct the payroll and entitlement errors you experienced.

Given the evidence, I am satisfied there were issues with respect to your payment and various actions were taken in response to them. I therefore find this factor is able to be substantiated.

## Factor 4: Non-adherence to and manipulation of the roster

The policy regarding fatigue leave following weekends and/or rostered days off dated June 2020 stated the worker is entitled to either fatigue leave or overtime pay if the worker does not have at least 10 consecutive hours off duty between shifts.

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The switchboard services roster for the period between 19 September 2022 and 2 October 2022 showed what shifts you were rostered to complete. I note all shifts had at least 10 hours between the finish time of the previous shift and the start time of the next shift.

On 7 August 2023, you emailed Ms Taylor and management and wrote you did not agree to be rostered as you were. You noted the union passed an agreement for rest days after night shifts and you did not agree to be rostered differently to this. For this reason, you refused to work on Monday morning with less than a 24-hour break following a night shift.

The switchboard services roster for the period between 4 March 2024 and 17 March 2024 depicted the shifts you were allocated. I note all shifts had a minimum of 10 hours between the finish time of the previous shift and the start time of the next shift.

The shifts allocated to you for the period from 18 March 2024 to 31 March 2024, according to the switchboard services roster, had a minimum of 10 hours in between them, however, this was not so for your shift on 17 March 2024 and 18 March 2024, which only had 7 hours in between.

The shifts allocated to you in the switchboard services roster for the period between 15 April 2024 and 28 April 2024 had at least 10 hours off duty between each shift. The same is seen in the switchboard services roster for the period from 29 April 2024 to 12 May 2024.

On 12 July 2024 you provided an overview of the events to WorkCover whereby you raised an issue with the rostering practices. You referred to signing an agreement while you were working on a casual basis which allowed you to only have 8 hours in between shifts, even though the standard break was 10 hours or fatigue pay was provided. However, later in the overview you submitted this agreement ceased operating once you commenced full-time employment, and you would never agree to an 8-hour break without compensation while working five shifts per week. You also asserted there was a reduction in penalty shifts, but an increase in fatigue due to the poor roster development. You believed your experience was undervalued in favour of less qualified individuals due to bias and friendships. Further, while other employees were granted shifts as per their requests, your requests for days off were ignored or taken as leave not scheduled. Additionally, the shifts were not fairly allocated, and employees favoured by Ms Taylor received shifts according to their requests while you were subjected to arbitrary scheduling.

In the response dated 9 August 2024, you submitted you were the only employee with such a short break time between shifts, and this was not fair or appropriate. Specifically in relation to the shifts

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scheduled on 17 March 2024 and 18 March 2024, there was only 7 hours of break in between, and in considering travel time, it left you with less than 5 hours of break time. As a result of the rostering practices, you felt fatigued. You wrote Ms Taylor had a malicious intent in attempting to apply the agreement you signed at the commencement of your employment to change the minimum break time. You submitted that since your commencement, you have signed new terms and working arrangements as a full-time employee, and applying such a condition in these circumstances was legally and ethically malicious. You asserted the agreement to allow an 8 hour break instead of 10 hours does not require signing to relinquish it, was not legally binding and was no longer fit for purpose since your transition from casual employment to full-time. You concluded Ms Taylor exploited her role to control employees' income through malicious rostering structures and specifically in your case, also the use of the agreement made by you as a casual employee.

The response of the employer dated 6 September 2024 submitted that in pay period 20, commencing 4 March 2024, you were scheduled for 3 night shifts with appropriate rest days allocated. These shifts included two Sundays and one on Saturday. On 11 March 2024 you left work one hour early and arrived 15 minutes late on each Sunday. During pay period 21, you were not scheduled for any night shifts. On 19 March 2024 you took sick leave, and on 24 March 2024 arrived 27 minutes late. On 25 March 2024 and 26 March 2024 you took annual leave. You were also scheduled to work one full weekend and were rostered on for Good Friday on 29 March 2024 and Easter Sunday on 31 March 2024. The employer also confirmed you did not formally rescind the 8-hour agreement signed by you on 17 June 2020 and the change to your employment contract and adjustments in your working hours did not automatically invalidate the agreement. That meant it remained current.

In considering the information available, I find the employer only failed to maintain a 10-hour break in between your shifts, as required by policy, on one occasion, namely between the shifts on 17 March 2024 and 18 March 2024. No evidence has been provided in support of the remainder of your assertions made in relation to the rostering. I therefore find this factor is able to be substantiated only to the extent of the one occasion of non-adherence to policy.

After considering the evidence available at review, I am satisfied that factors 2, 3 and 4 have been established to an extent. Therefore, to the extent that your psychological injury has arisen out of these factors, I am satisfied that the injury has arisen out of your employment.

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The work capacity certificate of Dr Hawes dated 1 July 2024 indicated your mechanism of injury was consistent with his clinical findings and there was no pre-existing factor or condition. This was maintained in all later work capacity certificates.

According to the communications report, in a conversation with WorkCover on 2 September 2024, Dr Hawes stated that work events were the sole cause of your psychological injury.

Having regard to the medical evidence, I am satisfied your employment was a significant contributing factor to the psychological injury.

It is now necessary for me to determine whether your injury has arisen out of or in the course of management action, and if so, whether management action is found to be reasonable and taken in a reasonable way.

## **Did the injury arise out of or in the course of management action?**

The term 'management action' is not defined in the Act. It has been interpreted by the Courts broadly and will vary depending on the circumstances of the case. The action must relate to action taken by or on behalf of the employer in connection with the worker's employment.

In *Avis v WorkCover Queensland*<sup>2</sup>, the Industrial Court held that the phrase 'arising out of' involves a causal or consequential relationship between the management action and the injury, but does not require a direct or proximate relationship.

## Factor 2: Management action taken in response to your complaint

Submitting complaints regarding aspects of your employment is connected to your employment. The complaint was reviewed by the Ethical Standards Unit, and then by Human Resources. These departments have the power to take action in response to your complaint on behalf of the employer. I find the steps taken by them were taken on behalf of the employer in connection with your employment and therefore amounted to management action.

## Factor 3: Withholding of pay

The pay issues arose as a result of Ms Taylor refusing your claims for payment in specific situations. Ms Taylor was your direct manager and thus in a superior position, which provided her with the power to manage your employment. Receiving payment for your work is directly

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<sup>2</sup> [2000] QIC 67

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connected to your employment. As such, I find Ms Taylor's decisions with respect to your remuneration amounted to management action.

## Factor 4: Non-adherence to and manipulation of the roster

The roster scheduled shifts of employees and indicated when employees were to undertake their employment. The roster was developed by Ms Taylor, who was in a position to manage your employment. The development of a roster and consequent allocation of shifts to you is directly related to your employment since you are not able to undertake it without the roster. Based on this, I am satisfied that in developing a roster which was directly related to your employment, Ms Taylor was undertaking management action since she was able to manage your employment in this way. Therefore, the factor constitutes management action.

## **Was the management action reasonable and taken in a reasonable way?**

In the matter of *Prizeman v Q-COMP*,<sup>3</sup> President Hall stated that the onus is on the worker seeking compensation to establish that management action was unreasonable or undertaken in an unreasonable way, and that in the absence of evidence to support that assertion, management action must be considered reasonable.

I have also had regard to the case of *Bowers v WorkCover Queensland*,<sup>4</sup> in which the Industrial Court determined that 'management action need not be perfect or above criticism and reasonable management action permits some failings, deficiencies and flaws'. It was also considered that blemishes in respect to performance by management does not make the management action unreasonable.

## Factor 2: Management action taken in response to your complaint

I refer to the previous evidence outlined earlier in the decision with respect to this factor. I acknowledge that you felt no formal investigation was undertaken since the Ethical Standards Unit relied solely on the information provided by you to assess the allegations. The employer conceded this was true, but submitted this was because they required further information from you and despite requesting it, you refused to participate in the process. For this reason, they did not have sufficient information to undertake a thorough assessment of the allegations. Since the Unit acknowledged receipt of your complaint in a timely manner, emailed you on various occasions to request additional information, and ultimately delivered a timely decision, I find their actions were reasonable and taken in a reasonable way. It was reasonable for them to proceed without

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<sup>3</sup> [2005] QIC 53; (2005) 180 QGIG 481.

<sup>4</sup> [2002] QIC 18.

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undertaking a thorough investigation given you, as the complainant, were not willing to participate and provide further information. I note you submitted you did not have enough time to provide further information, however, due to your lack of communication of this information to the Unit, they could not have known this was the reason for your lack of participation. Likewise, I find Ms Reese contacted you twice in an attempt to schedule a meeting with you to discuss your concerns and allegations, and without your participation in this process, there was no other actions available for Ms Reese to take. Therefore, I am satisfied this factor amounted to reasonable management action taken in a reasonable way.

## Factor 3: Withholding of pay

Section 23 of the Hospital and Health Service General Employees (Queensland Health) Award provides for payment entitlements with respect to public holidays. It indicates that an employee shall be paid at the rate of double time and one-half with a minimum of 4 hours for work done on Easter Saturday and Easter Sunday. All employees are also entitled to be paid a full day's wage for Labour Day irrespective of whether no work may be performed on such day, and if an employee does work on Labour Day, they are entitled to the full day's wage in addition to a payment for the time actually worked at one and one-half times the ordinary time rate of pay with a minimum payment as for 4 hours' work. Further, where an employee is in receipt of the additional week's leave as prescribed in clause 19.2(a) and is rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day, such employee shall be paid an additional day's wage or be granted a day's holiday in lieu at a time to be mutually arranged, but this is not applicable where an employee is not ordinarily required to work on a Saturday or Sunday.

The policy regarding fatigue leave following weekends and/or rostered days off dated June 2020 stated an employee was to be granted fatigue leave if the employee worked more than 2 hours overtime between 10:15 pm and the commencement of work on their next ordinary rostered working day and did not have at least 10 consecutive hours off duty during the 15 hours immediately preceding the commencement of work on the next ordinary rostered working day. This leave is to be granted until the employee had 10 consecutive hours off duty and no pay is to be deducted during this period. If an employee continues work without having had 10 consecutive hours off duty, payment is made at double rates until the employee is released from duty for such period and the employee is entitled to be absent until completing the required 10 consecutive hours off duty without loss of pay. The policy notes that many problems can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day and not rostering on call an officer who is rostered for the first shift on the following day.

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The annotated pay advice dated 28 April 2021 indicates you received no payment for the public holiday you had off on 5 April 2021.

The annotated pay advice dated 26 May 2021 states you did not receive the public holiday payment due to you being rostered on the night shift and still required the payment.

The annotated pay advice dated 27 April 2022 submitted your shifts fell on days without public holiday rates and consequently you required payment for two public holidays.

On 4 April 2023 you messaged Ms Taylor with an image of the upcoming roster and stated 'Definitely needs amendment prior to the 4 public holidays'. In response she asked whether she gave you a weekend on that roster. You replied you received 1 of 5 public holidays and that public holiday was the only Sunday shift. She then wrote, 'I meant did I roster you the next weekend'. You responded you were okay with it, but her roster actually reduced your pay by \$1,500 for the fortnight. She replied that she would look at it tomorrow.

In the annotated pay advice dated 26 April 2023, you indicated you were allocated a night shift and again were not paid for the Easter Monday public holiday as per section 23.

On 20 February 2024, you messaged Ms Taylor, stating you had tested positive for Covid and asked what the current policy was. She stated you were eligible for up to 5 days paid leave with the Special Pandemic Leave request and you would have to provide photo evidence of your Covid test against your identification. She requested that you send it to her so she could submit it in MyHR. On 21 February 2024 Ms Taylor then messaged you and informed she had to decline your request in MyHR because the minimum period for Covid leave was 5 days for a positive staff member. She noted the statutory declaration you provided was sufficient evidence. She requested for you to resubmit your leave days. After you asked for some clarification and she provided it, you messaged you were confused about why your amended leave request was declined. You noted you did everything as required. Ms Taylor replied that the dates were fine, but it was necessary for you to attach the statutory declaration to the request, and once it was attached she could approve it. She stated she was then in her office if you wanted further assistance with this. You then sent her screenshots and stated you were not sure what was occurring, and you never deleted the declaration on your end.

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You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024. You specified you did not receive payment for the Saturday public holiday on which you were not required to work and had not been compensated with the correct penalty rates for your Monday shift following a Sunday shift. You noted the Hospital and Health Service General Employees (Queensland Health) Award stipulated in part 5 section 15 that unless there was a mutual agreement of regular rosters, employees were entitled to a minimum 10-hour break.

In response to your email dated 8 April 2024, Ms Taylor sent you an email on 9 April 2024. She stated she submitted an AVAC for public holiday not required on Saturday 30 March 2024 and this would be processed in the next pay run. With respect to the other dates you outlined, she asked for you to submit an enquiry through MyHR payroll enquiries so they can investigate your entitlements for public holiday not required payments, since they are older than 3 months. Ms Taylor noted that if payroll decided you were entitled to those payments, she would happily submit a validation of claims older than 3 months form. She added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this. She then proceeded to acknowledge the importance of communication and requested that you raise your concerns with her as soon as they arise so she could action them sooner for you.

On 24 April 2024 you emailed Ms Taylor and informed you had been in touch with the payroll department regarding discrepancies in your payments, who advised you to notify Ms Taylor that payments for public holidays not worked would need to be processed as overtime in the fortnightly pay cycle. You asked for Ms Taylor to please take the necessary action and provide a PRN for confirmation. You then expressed your dissatisfaction with the process and that it had been more than 2 weeks without any response or overtime payment.

Ms Taylor responded to your email on 1 May 2024 via email and stated that after a consultation with payroll and Human Resources, your request for fatigue payment for 18 March 2024 would not be processed due to the existing 8-hour agreement signed by you on 17 June 2020. However, she noted you are able to terminate this agreement going forward. In relation to your query about the top-up/reduction of hours on your payslips, Ms Taylor indicated an investigation was currently underway by payroll. She explained the payroll system automatically generated adjustments for top-up/reduction hours which she was unable to view directly and that if you notice any discrepancies on your future payslips, to inform her immediately so she could facilitate a prompt resolution. Likewise, payroll was also at the time still reviewing your entitlements regarding public holidays not required arising while you were a part-time employee, and also your overtime

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concerns. She confirmed that since your commencement of full-time employment, all payments for public holidays not required had been processed.

Ms Grant emailed Ms Taylor on 3 May 2024 and outlined you had wages top up on fortnight commencing 5 February 2024 for 0.95 minutes as you were under contracted hours, and it was topping up the missing wages from your RDO balance. This was due to you having a 7-hour shift on 9 February 2024 instead of an 8-hour shift. Ms Grant stated that if a shift was shortened when RDO was accruing, the remaining shift not worked needs to be booked as leave without pay to stop the top up. The same occurred for the following fortnight commencing on 19 February 2024. The opposite occurred for the fortnight commencing on 18 March 2024. There were too many ordinary shifts, which resulted in a wage reduction of 7.55 hours because one of the shifts had to be overtime. Likewise, during the fortnight commencing 1 April 2024, you worked overtime. Ms Grant requested Ms Taylor to submit an AVAC to correct the shifts for each fortnight so you were paid correctly and your RDO balance could be amended.

On 10 May 2024, you emailed payroll and expressed your concern regarding Ms Taylor's challenges with payment processing.

In response to your email of 10 May 2024, payroll responded via email dated 13 May 2024 and informed they could not see that any issues had been corrected. They instructed for you to speak to Ms Taylor to have them corrected with a submission of an AVAC.

On 21 May 2024, Ms Taylor emailed you and informed she was awaiting payroll confirmation regarding some payroll issues and as soon as she received it, she would submit an AVAC for the next pay run.

The Attendance Variation and Allowance Claim signed by Ms Taylor dated 28 May 2024 indicated you finished an hour early on 9 February 2024 and on 28 February 2024, had the public holiday off on 30 March 2024 and finished an hour late on 1 April 2024.

The Validation of Claims Older than 3 months Form signed by Ms Taylor on 28 May 2024 stated adjustments were to be made to your shifts due to incorrect entries, and once these adjustments were processed, your RDO balance would be correct.

The overview of events provided by you on 12 July 2024 generally stated it was unreasonable for Ms Taylor to decline various payments claimed by you given you had an entitlement to them. You

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submitted you were entitled to the following payments: accredited payments for recognised Australian education, income while you were on sick leave due to Covid, and fatigue pay.

In an email to WorkCover dated 18 July 2024, you submitted Ms Taylor was withholding payment for your overtime hours. You explained that initially Ms Taylor advised you to contact payroll to resolve this. At that point, you had already reached out to them but were of the understanding that the proper process to address pay discrepancies was to involve management, which is why you initiated the contact with Ms Taylor. Following an email from payroll, Ms Taylor informed she was awaiting their response. You noted you found it appropriate that payroll included Ms Taylor and yourself in the emails. After waiting for a week, you followed up with payroll to inquire about Ms Taylor's response and were informed she had not yet replied, however eventually Ms Taylor again told you she was waiting for a response from payroll. You described the situation as frustrating and exhausting. You felt this was an act of control and abuse, forcing you to fight for your rightful earnings. Further, you submitted it was unreasonable for Ms Taylor to avoid resolving this issue during work hours.

In a response dated 9 August 2024, you stated you were entitled to fatigue pay due to only having a 7-hour break between the end of your shift on 17 March 2024 and beginning of the shift on 18 March 2024. Due to the fatigue from this, you took leave on 19 March 2024, but the payment was taken from your sick leave, and you did not receive fatigue pay. You also noted Ms Taylor attempted to apply the agreement you signed as a casual employee allowing only an 8, instead of a 10, hour break in between your shifts. You highlighted this agreement was no longer in force, since you signed a permanent full-time contract, which superseded it.

In another response also dated 9 August 2024, you stated that an examination of the dates requiring payment adjustments, compared to the dates when your payment was actioned and processed, is concerning. You further submitted Ms Taylor preferentially rostered employees, which led to a lack of shifts for you on public holidays and consequently a reduction in payment. You then proceeded to submit you were not paid as required for the most recent public holiday, and when you contacted Ms Taylor regarding it, she was slow to action it and falsely misrepresented that it was payroll's fault. You noted she eventually processed the pay correction on 28 May 2024, which was not timely given that the pay error dated back to February 2024. With respect to the income you were entitled while on sick leave due to Covid, you wrote Ms Taylor abused her authority and bullied you by delaying and not approving your leave. You enquired from Ms Taylor whether she preferred you to send her the information directly or through MyHR. As per her request, you uploaded the statutory document to MyHR on 20 February 2024. Ms Taylor then

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sent you a message on 21 February 2024 informing she declined the leave because the dates were incorrect. You submitted that at a later time, Ms Taylor then informed you the dates were correct, after you sent her the guidelines, and claimed you had not uploaded the statutory declaration. She again declined your leave. On 29 February 2024, you sent Ms Taylor a text message asserting the documents were there and showed her on your phone that the declaration was still uploaded, whereby the upload time was stated as 20 February 2024. Ms Taylor contended it was not there when she declined the leave, and she finally approved the entitlement after the third attempt on 29 February 2024. You noted you were eventually paid, in both instances, but Ms Taylor used her authority to withhold your payments maliciously.

The response of the employer dated 6 September 2024 submitted they had no evidence to suggest your pay had been withheld. Corrective action was taken by Ms Taylor as per the employer's internal process to correct payroll and entitlement errors.

I acknowledge there were various issues regarding your pay. Throughout your submissions you have expressed your dissatisfaction with the process of the employer in reviewing your payments and highlighted it was unreasonable for you to be required to fight for your entitlements. I find that the extent of pay issues experienced by you amounted to blemished management action. However, I note the pay issues ultimately were all resolved. Ms Taylor, payroll and Human Resources were always encouraging of you expressing your issues as soon as possible, were attentive to the issues you expressed and undertook necessary reviews and corrective actions to resolve them. As such, while the occurrence of the issues was a blemish, the resolution of them amounted to reasonable management action taken in a reasonable manner. Therefore, I find this factor constitutes reasonable management action taken in a reasonable manner.

## Factor 4: Non-adherence to and manipulation of the roster

I note previously in this decision I found this factor was substantiated only to the extent that the employer failed to provide you with a minimum 10-hour break between shifts on 17 March 2024 and 18 March 2024. As a result, my decision regarding whether this factor amounts to reasonable management action taken in a reasonable way will be focused only on this substantiated non-adherence.

The policy regarding fatigue leave following weekends and/or rostered days off dated June 2020 advocates for a minimum 10 hours of break between the finish of one shift and the commencement of the next shift by an employee.

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The fatigue risk management policy dated February 2021 requires line managers to ensure fatigue risk is assessed and recorded, and where level of risk is high, to manage, monitor, review and communicate the risk.

The switchboard services roster for the period between 4 March 2024 and 17 March 2024 shows you were scheduled to work until 11:00 pm on 17 March 2024.

The switchboard services roster for the period between 18 March 2024 and 31 March 2024 demonstrated you were scheduled to commence working on 18 March 2024 at 6:00 am.

On 8 April 2024, you emailed Ms Taylor and requested a review of your pay for the period between 8 March 2024 and 31 March 2024. You particularly requested that you be compensated with the correct penalty rates for your Monday shift from 6:00 am to 2:00 pm, following a Sunday shift rostered from 2:00 pm until 10:00 pm on the previous fortnight.

In response to your email dated 8 April 2024, Ms Taylor sent you an email on 9 April 2024. She stated that, as discussed previously with you, if you have any concerns regarding your rosters, to please see her as soon as possible.

On 1 May 2024, Ms Taylor informed you via email that following a consultation with payroll and Human Resources, your request for fatigue pay for 18 March 2024 would not be processed because of the existing 8-hour agreement. She mentioned you had the option to terminate the agreement and she could provide you with the information regarding how to do so.

In the overview provided by you on 12 July 2024 you explained that upon commencing your casual employment, when you were working 2-4 days per week, you signed an agreement allowing the employer to roster you on shifts which had a minimum 8-hour break, instead of the standard 10-hour break required. Eventually, after you had transitioned to full-time employment, you raised your concerns about fatigue pay. Ms Taylor responded to this that she had to consult Human Resources about your underpayment, and after a lengthy process, she rejected your claim and cited an agreement for an 8-hour break between your shifts, which you noted contradicted your full-time contract. You pointed out she was wrongfully applying the agreement made during your casual employment, but received no further correspondence from her and no payment was made. You submitted it was unreasonable for an employer to intentionally schedule you for shifts with less than a 10-hour break in between and to apply the contract which you signed when you were only working twice a week.

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In your response dated 9 August 2024, you stated you were expected to finish on 17 March 2024 at 11:00 pm and start again on 18 March 2024 at 6:00 am. This meant you received only a 7-hour break between the shifts, which did not include travel time. If you factored in travel time, your break between shifts would have been less than 5 hours. You reiterated it was unreasonable for Ms Taylor to apply the 8-hour agreement you signed earlier in this situation.

The response of the employer dated 6 September 2024 submitted that during pay period 20, commencing on 4 March 2024, you were scheduled for 3 night shifts with appropriate rest days allocated. You arrived 15 minutes late on 17 March 2024. The employer wrote that records indicate Ms Taylor took appropriate action by shortening your shift, but this resulted in you being remunerated for the 30 minutes you did not work. The employer did not mention your shift on 18 March 2024. They also confirmed you had not formally rescinded your agreement for only an 8-hour break, which you signed on 17 June 2020, and the change of your contracts and adjustments in working hours did not invalidate this agreement. This meant the agreement remained current. In their response, the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award, which stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances.

In considering the evidence, I find there was uncertainty between you and the employer regarding whether the 8-hour agreement continued to apply. However, it is not necessary for me to consider whether the employer's stance on its application was reasonable. The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours. Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break. Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement.

## Conclusion

After considering the evidence available at review, in relation to the factors for determination, I have determined:

- you sustained a personal injury of a psychological nature
- your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor
- factors 2 and 3 amounted to reasonable management action taken in a reasonable way

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- factor 4 amounted to unreasonable management action.

In the decision of *Delaney v Q-COMP*<sup>5</sup> the Industrial Court held that in determining the issue of whether management action was reasonable and taken in a reasonable way, a global evaluation of management actions must be made. In *Delaney*, it was held that when management actions are joined by subject matter, time and personality, the actions are entitled to be evaluated on a global basis.

I note that since two out of the three causative factors amounted to reasonable management action taken in a reasonable way, this means your psychological injury mainly arose out of such management action. Further, factor 4 was initially only substantiated to the extent of one incident and it was only the one incident which amounted to unreasonable management action. Therefore, I find overall your psychological injury arose out of reasonable management action taken in a reasonable way and section 32(5) is consequently enlivened.

## Summary

I therefore conclude that the provisions of section 32(5) of the Act exclude your psychological condition from the definition of 'injury' within section 32(1) of the Act.

Therefore, I have determined that you did not sustain an 'injury' in accordance with section 32 of the Act and you do not have an entitlement to compensation.

## Appeal rights

If either party disagrees with this decision then either party may appeal to the Queensland Industrial Relations Commission in Brisbane. Either party has 20 business days from the date of receipt of this decision in which to lodge an appeal. A copy of the notice lodged with the Commission must also be served on the Workers' Compensation Regulator within 10 business days.

For information about the appeal process please contact me or refer to:

<https://www.worksafe.qld.gov.au/claims-and-insurance/compensation-claims/appealing-a-review-decision/guide-to-appealing-a-review-decision>.

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<sup>5</sup> [2005] QIC 11; 178 QGIG 197

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Yours sincerely



Victoria Squires

**Senior Reviewing Officer**

**Review Unit**

**Workers' Compensation Regulatory Services**

cc Metro South Hospital And Health Service

cc WorkCover Queensland